



Department of Motor Vehicles



Go the extra mile, be an **ORGAN DONOR**

New York State's need for organ and tissue donation is tremendous. Each year, thousands of New Yorkers wait for a life-saving transplant. Just one person who donates their organs can save up to eight lives.

What can you do to help?

Enroll in the NYS Donate Life Registry Online:

If you are 16 years of age or older, simply go to dmv.ny.gov and sign up to be an organ donor through MyDMV, or go to donatelife.ny.gov.

Enroll By Mail:

If you prefer, enroll by signing the organ donation box on your driver license or non-driver identification card application or on your renewal form. If it's not time for you to renew your license or non-driver ID, simply go to donatelife.ny.gov to print and mail in your enrollment application or enroll online; it's just that easy!

What You Should Know if You Enroll in the NYS Registry:

- Tell your family you have enrolled in the Registry and have given your legal consent for donation to occur upon your death;
- Your decision to donate will not affect your medical treatment;
- The organs and tissues you donate will go to the patients in the greatest need;
- There is no cost to the donor's family;
- You can have your name removed from the Registry at any time;
- After you enroll, you will receive a confirmation email or letter to confirm your enrollment and provide you with additional information.

For more information call 1-866-NYDONOR (693-6667)
visit donatelife.ny.gov or contact one of these organizations:

Donate Life NYS: 518-326-3237 www.donatelifenys.org

Center for Donation & Transplant: 1-800-256-7811 www.cdtny.org (Capital District)

Finger Lakes Donor Recovery Network: 1-800-810-5494 www.donorrecovery.org (Finger Lakes Region)

LiveOnNY, Inc.: 1-800-443-8469 www.liveonny.org (Metro NYC and Long Island Area)

ConnectLife: 1-800-227-4771 www.connectlife.org (Western NY/Bufalo)



New York State

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PART 1

INFORMATION FOR DRIVERS & VEHICLE OWNERS

CHAPTER 1 / DRIVER LICENSES

You must have a valid driver license to drive legally in New York State. If you reside in and hold a valid license from another state or nation, you can drive legally in New York State. However, even if you are licensed somewhere else, people under age 16 cannot drive in New York State.

Drivers who have moved here must turn in their out-of-state driver license and get a New York license within 30 days of becoming a permanent resident. In most cases, it is illegal to hold a New York driver license and a driver license from another state at the same time. It is also a violation of Federal and state law to hold more than one commercial driver license (CDL).

It is a crime to alter or forge any motor vehicle document, including a driver license. This may cause suspension or revocation of the driver license and criminal prosecution resulting in a fine or imprisonment.

TYPES OF LICENSES

New York State recognizes six types of non-commercial driver licenses. The information in this chapter applies to passenger car and motorcycle licenses. Information about commercial driver licenses (CDL's) can be found in the Commercial Driver's Manual (CDL-10). This is available from the DMV website (search under Forms) or at any motor vehicle office. You must have a CDL if you drive any vehicle that:

- Has a manufacturer's gross vehicle weight rating (GVWR) of more than 26,000 pounds (11,794 kg); or
- Has a gross combination weight rating (GCWR) of more than 26,000 pounds (11,794 kg), including any towed unit with a GVWR of more than 10,000 pounds (4,536 kg); or,

- Is made or used to carry 15 or more persons, in addition to the driver; or,
- Regardless of seating capacity, is defined as a bus by Article 19-A of the Vehicle and Traffic Law (including vehicles that carry school children or disabled people); or,
- Carries hazardous materials required by federal law to contain a placard.

The non-commercial driver licenses in this manual are:

Operator, Class D - Minimum age is 18, or age 17 with a driver education Certificate of Completion (see Driver Education later in this chapter). Allows you to drive a vehicle with a manufacturer's gross vehicle weight rating (GVWR) of 26,000 pounds (11,794 kg) or less; to tow a vehicle with a GVWR of 10,000 pounds (4,536 kg) or less; or tow a vehicle of more than 10,000 pounds if the gross combination weight rating (GCWR) of the two vehicles together is no more than 26,000 pounds (11,794 kg). You can also operate Class B and C mopeds with this driver license.

Junior Operator, Class DJ - Minimum age is 16. Allows you to drive a vehicle with a GVWR of 10,000 pounds (4,536 kg) or less, and tow a vehicle of 3,000 pounds (1,361 kg) or less. You can also operate Class B and C mopeds with this driver license. Please note you are limited with where, when, and with whom you can drive – please refer to the section of this manual labelled “Junior Operator Restrictions” found later in this chapter.

Taxi/Livery, Class E - Minimum age is 18. Allows you to drive the same vehicles as a Class D license, and transport passengers for hire in a vehicle designed or used to carry 14 or fewer passengers. If the vehicle is defined as a bus under Article 19-A of the Vehicle and Traffic Law (e.g., a school car or a van that transports physically or mentally disabled persons), regardless of seating capacity, you must have a CDL.

Motorcycle, Class M - Minimum age is 18, or age 17 with a driver education Certificate of Completion (see Driver Education later in this chapter). Allows you to drive motorcycles and mopeds.

Junior Motorcycle, Class MJ - Minimum age is 16. Allows you to drive motorcycles and mopeds. You are also limited with where, when, and with whom you can drive – please refer to the section of this manual labelled “Junior Operator Restrictions” found later in this chapter.

Note: If you have a motorcycle license and another type of driver license, both classes will be listed on one document (e.g., “Class DM”).

Enhanced Driver License - Can be used for land and sea border crossings to and from the U.S., Canada, Mexico, Bermuda and the Caribbean. This license can be used instead of a passport as an identity and Citizenship document at these crossings and for air travel within the U.S. This is an option for NYS residents who are U.S. citizens. Commercial driver licenses and motorcycle licenses can also be issued as an EDL.

REAL ID License – REAL ID License – The REAL ID Act is a federal law passed by Congress resulting from the 9/11 Commission’s recommendation that establishes specific federal requirements for state-issued driver licenses, permits and ID cards to be acceptable for certain federal purposes. Every air traveler flying within the United States must present a REAL ID or an Enhanced Driver License, or bring another acceptable form of identification, determined by the federal government, to get through security at U.S. airports. To get a REAL ID, you will need to go to a DMV Office. **visit dmv.ny.gov.**

Personal Use Vehicle (Rental, Recreational Vehicle) or “R” endorsement - The Personal Use Vehicle “R” endorsement is required for operation of recreational and/or rental vehicles used to transport personal household goods when the vehicle is over 26,000 pounds (11,794 kg.) GVWR and/or forty (40) feet in length. This endorsement is available to Class D and E license drivers.

To get an “R” endorsement: Submit a completed Application for Driver License or ID Card (MV-44) to a state or county motor vehicle office; pay a permit fee, which is valid for a maximum of two road tests; and pass a road test in the size and type of vehicle you will drive. No written test is required. For the road test, a driver who is at least 21 years old, with a license valid for the vehicle you will drive during the test, must accompany you. (e.g., a driver license with an “R” endorsement or the correct Commercial Driver License). The road test will take approximately 15 minutes and will include turns, intersections and backing the vehicle to the curb. When you pass the road test, you must go to a motor vehicle office and pay the required fee to complete the license amendment process.

WHEN YOU APPLY FOR YOUR FIRST LICENSE

The information and required application forms you need to apply for a learner permit or driver license are available at any motor vehicle office. You can also download them from the DMV website. To apply for a learner permit or driver license you must complete an Application for Driver License (MV-44). You must pass a vision and knowledge test and pay the application and license fees. Most drivers must also complete an approved 5-hour Pre-Licensing Course and pass a road test. For more information about how to apply for and receive a license to drive a motorcycle or a commercial vehicle that requires a CDL, refer to the Motorcycle Operator's Manual (MV-21MC) or the Commercial Driver's Manual (CDL-10).

You must bring your completed application to any motor vehicle office, show the required proof of name and date of birth, provide your Social Security number and pay the correct fee.

Your first New York driver license will be issued for a period not to exceed 5 years, on your month and day of birth. Your fee for a learner permit and license in Class D, DJ, M or MJ will be based on your age and date of birth.

Proof of Identity and Age

For your protection, DMV must be sure who you are. As part of the application, you must provide your Social Security number. You must present documents that prove your name and age. All proofs must be in English or accompanied by a certified English translation. The list of acceptable documents and assigned point values, described below, are on forms License/Permit/ID Instructions (MV-44.1 and MV-44.1RID) and Proofs of Identity (ID-44 and ID-44RID) available from the DMV website (search under Forms) or at any motor vehicle office.

Proof of Name

Documents that prove your name are assigned a point value. You must present proofs that total six points or more. At least one of the proofs must have your signature.

Examples of common proofs and their point values are listed below.

Each document below has a value of 6 points:

- New York Photo Driver License/Permit/Non-Driver ID Card Card (Must be current or not expired for more than 2 years.)

Each document below has a value of 4 points:

- DMV Statement of Identity and/or Residence by Parent/Guardian (MV-45) (If under 21. See special instructions and requirements on the DMV form). Proof of date of birth and an Social Security number are required for the applicant.
- DMV Statement of Identity and/or Residence (MV-45A) (For applicants represented by Government or Government Approved Facilities.)
- DMV Statement of Identity (MV-45B) (For applicants who can be considered a disenfranchised, homeless youth; not usable for an Enhanced or REAL ID Document.*)
- U.S. Passport or Passport Card (Must be valid.)
- Foreign passport - in English and with a U.S. Visa and valid I-94 or unexpired I-551 stamp or statement on visa. If the document is not in English, a certified translation by the embassy or consulate of the issuing country is required. See the publication Proofs of Identity (ID-44).
- Consular ID Document
- Foreign Driver License with Photo. Must be current or expired no longer than 2 years.
- Photo Driver License/Permit/Non-Driver ID Card issued by another U.S. state, jurisdiction, territory or possession, or, a Canadian province or territory (must be current or expired no longer than 2 years.)

Each document below has a value of 3 points:

- Valid U.S. Re-entry Permit (I-327)
- Valid U.S. Refugee Travel Document (I-571)
- Certificate of Citizenship or Certificate of Naturalization (N-550, N-560, N-561, N-570)
- Unexpired Permanent Resident Identification Card (INS I-551)
- Valid U.S. Employment Authorization Card (INS I-688B or I-766, with photo)
- U.S. Military Photo Identification Card (issued to active, reserve, and retired military personnel only)
- NYS /Benefit/ Medicaid Card, with photo
- Border Crossing Card
- Foreign Marriage or Divorce Record issued by a government entity OR Court-Issued Name Change Decree*
- NYS Benefit/Medicaid Card WITHOUT Photo
- Foreign School Report Card/Record with Photo*
- Expired Permanent Resident Card (expired no longer than 2 years)
- Expired U.S. Employment Authorization Card (INS I-688B or I-766, with photo) (expired no longer than 2 years)

Each document below has a value of 1 point:**Each document below has a value of 2 points:**

- U.S. Military Dependent ID card
- NYS DMV Non-Photo Interim License or Computer Generated Learner Permit
- NYS Vehicle Certificate of Title
- NYS Vehicle or Boat Registration Document
- U.S. Social Security Card
- U.S. High School Photo ID with Report Card or Official Transcript
- U.S. College Photo ID with Official Transcript
- U.S. Marriage or Divorce Record issued by a state or local government OR Court-Issued Name Change Decree
- NYS Professional License
- NYS or New York City Pistol Permit
- St. Regis Mohawk Tribal Photo ID Card
- Valid U.S. Major Credit Card, or
- U.S. Cash (ATM) Card (with pre-printed name and signature), or
- U.S. Canceled Check (with your pre-printed name), or
- U.S. Bank/Financial Institution Statement/Record
- U.S. Employee Identification Card
- U.S. Computerized Pay Stub (must include your name)
- U.S. Supermarket Check Cashing Card (must have your pre-printed name and signature)
- U.S. Life Insurance Policy (in effect at least two years)
- U.S. Health Insurance Card/Prescription Card to show current proof of health insurance coverage
- U.S. Utility Bill (must have your name and address)
- U.S. High School Diploma or General Equivalency Diploma (GED)
- Federal or New York State W-2 Form (must include Social Security Number)

- U.S. Union Card
- Veteran Universal Access Photo ID Card
- U.S. Court Document with the applicant named as a party*
- Foreign School Report Card/Record WITHOUT Photo*
- U.S. Municipal ID Card with Photo
- IRS Tax Transcript or Individual Taxpayer Identification Number Issuance Letter*
- Annual Social Security Statement (SSA-1099)

Proof of Age

You must prove your date of birth. The DMV will accept the original or certified copy of ANY ONE of these documents from the issuing agency:

- Birth Certificate issued and certified by the U.S. Department of State or a Board of Health or Bureau of Vital Statistics in the U.S., its territories or possessions
- Certificate of Birth Registration issued by the Department of Health of New York State or New York City
- U.S. Military Photo Identification Card
- U.S. Passport
- Foreign Passport (with INS documentation) or Immigration Documents - See the publication Proofs of Identity (ID-44) for details
- Certification of Citizenship or Certificate of Naturalization

Vision and Knowledge Tests

To pass the vision test, you must have 20/40 vision in at least one eye with or without corrective lenses. If you cannot pass this test or if you wear special lenses, contact a DMV Call Center for additional instruction.

The written test for a Class D, M, DJ, MJ or E

license examines knowledge of the rules of the road, safe driving techniques, road signs and the laws about alcohol and drug use while driving. To pass the written test, you must correctly answer at least 14 of the 20 questions asked, but you must correctly answer two of the four questions about road signs. You can practice for the written test with the questions included in this Driver's Manual and you can take practice quizzes online at the DMV website. (dmv.ny.gov)

If you require a motorcycle license, also study the Motorcycle Operator's Manual (MV-21MC). There is a separate commercial driver license written test for a CDL Class A, B, or C. If you want to apply for a commercial driver license, also study the Commercial Driver Manual (CDL-10).

Automated Knowledge Test

Class D knowledge tests are offered in multiple languages and can be taken via touch screen test stations or on paper. For practice tests, please visit our website by scanning the QR code below. The QR code can be scanned with your smartphone once you've downloaded a free QR Code Reader to your phone.



Online Knowledge Test Application

Before you apply for a learner permit, students who are at least age 15 and 11 months can take the written test through the DMV Online Knowledge Test Application (OKTA) program. The test is given at participating high schools across New York State. The test is given in an easy-to-use format and is offered in English and Spanish.

It is not necessary for schools that participate to have a driver education program. They must provide a personal computer with Internet access, a printer and at least one staff person to monitor the tests. The OKTA program automatically scores each test and displays the results for the student on the computer screen.

Students who pass the test online will receive

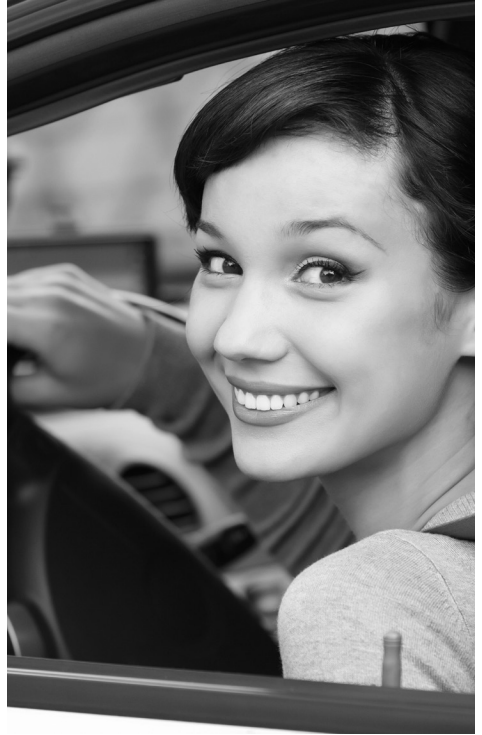
a receipt, instructions and all required forms to apply for a learner permit. Students who are at least age 16 can bring their receipt and completed forms to any state or county motor vehicle office to apply for a learner permit. Students who fail the test can take it again online as many times as the school allows.

THE LEARNER PERMIT AND ROAD TEST

The Learner Permit

When you pass the vision and written tests and pay your fees, your learner permit will be issued and you can start to learn to drive. When you practice, you must be supervised by a licensed driver who is at least 21 years old, has a license valid for the type of vehicle you are driving, and is seated in the front seat with you when you are driving. New York State also has additional restrictions that apply to drivers under the age of 18. Based on the Graduated Driver Licensing laws, if you have a DJ Learner Permit you are restricted by where and when you drive, and who can be in the car with you when you drive. These restrictions are based on where you are driving and are best explained by the chart on the next page:

The restrictions for drivers with learner permits are also available at state or county motor vehicle offices or online, "Important Information About Learners' Permits" (MV-500H), at the DMV website, dmv.ny.gov/forms/mv500h.pdf.



REGIONAL RESTRICTIONS FOR A JUNIOR PERMIT		
New York City (5 Boroughs)	Long Island (Nassau & Suffolk)	Upstate (All Other Counties)
5AM – 9PM	5AM – 9PM	5AM – 9PM
You must drive only under the immediate supervision of your: 1. Parent 2. Guardian 3. Person “in loco parentis” 4. Driver Education Teacher 5. Driving School Instructor Those listed above must be age 21 or older and have a license valid for the vehicle being driven. Vehicle must have dual controls (dual brakes)	You must drive only under the immediate supervision of your: 1. Parent 2. Guardian 3. Person “in loco parentis” 4. Driver Education Teacher 5. Driving School Instructor; or 6. Anyone who has been designated in writing by the parent, guardian, or person “in loco parentis”. Those listed above must be age 21 or older and have a license valid for the vehicle being driven.	You must drive only under the immediate supervision of: A person who is age 21 or older and has a license valid for the vehicle being driven.
9PM – 5AM	9PM – 5AM	9PM – 5AM
You must NOT drive.	You must NOT drive	You must drive only under the immediate supervision of your: 1. Parent 2. Guardian 3. Person “in loco parentis” 4. Driver Education Teacher 5. Driving School Instructor Those listed above must be age 21 or older and have a license valid for the vehicle being driven.

Definitions (For the purpose of this section of the manual)

“Properly Licensed” means has a license valid in this state to drive the type of vehicle being driven by the new or junior driver.

“Guardian” means a person who has, on a regular and extended basis, assumed the character of a parent and discharges parental duties as the result of a court appointment.

“In Loco Parentis” means a person who assumes the role of a parent for the purpose of

performing parental duties with the implied or actual consent of a parent (e.g. as a result of the death, incapacity, or in the absence, of a parent).

“School Course” means instruction that is licensed or approved by a state agency or department, or training conducted by the U.S. Armed Forces. The term “school course” does NOT include activities or events for which no scholastic credits are given.

“Employment” means a place of business at which you are paid to work on a scheduled basis. You cannot drive during work or as part of your work duties.

“Work Study Program” means a state-approved work-study program. For example, a Board of Cooperative Educational Services (BOCES) course for which academic credit is granted for work experience.

“Medical Appointment” means medical treatment that is necessary for you or a member of your household.

“Daycare” applies to travel to and from child care if the attendance of the child is necessary for a family member to maintain employment or attend a school course.

General Rules for All Drivers with Learner Permits

If you hold a learner permit, you cannot drive:

- Unless you are accompanied by a supervising driver who is at least age 21 and has a license to operate the vehicle you are driving. In Long Island and New York City, this person must be a parent, guardian or driving instructor. For example, a person with a motorcycle license can supervise a motorcycle learner.
- In a DMV road test area.
- On any street within a park in New York City or any bridge or tunnel under the jurisdiction of the Triborough Bridge and Tunnel Authority.
- On the Cross County, Hutchinson River, Saw Mill River, or Taconic State parkways in Westchester County.

Driving with a Junior Learner Permit

- You cannot drive with more than one passenger under the age of 21 unless they are members of your immediate family or if your supervising driver is your parent, guardian, person “in loco parentis,” driver education teacher or driving school instructor.

- You and each passenger must wear a seat belt: one per person. Every child passenger must use a correct child restraint. (See: Chapter 8, “Seat Belts, Child Safety Seats, and Air Bags”)
- If you hold a junior permit, the only passenger allowed in the front seat is your supervising driver.
- Also see “Special Rules for Drivers with Junior Permits and Licenses,” Chapter 2.

Preparing for the Road Test

Safe drivers often find their amount of practice before the road test makes a positive difference. Before you take the test, it is important that you have had at least 50 hours of practice, with at least 15 hours after sunset. It is recommended that at least 10 hours of the supervised practice be in moderate to heavy traffic. Road tests are given on city streets, but you should practice on expressways and other types of highways as well. DMV suggests you take a high school or college driver education course or lessons from a DMV-licensed driving school. If you cannot take a course or lessons, have the person who teaches you read Parts 2 and 3 of this manual.

You cannot practice in a DMV road test area or on any restricted roads. In New York City, these areas include any street within a park and all bridges and tunnels under the jurisdiction of the Triborough Bridge and Tunnel Authority. In Westchester County, the streets and roadways you cannot practice on include these parkways: Cross County, Hutchinson River, Saw Mill River and Taconic State.

Safe Driving Course Requirement

Before you can make a road test appointment, you must first complete an approved safe driver course. This requirement is automatically fulfilled as part of every high school or college driver education course. Or you can complete this requirement when you take a special Pre-Licensing course available at most licensed driving schools. For motorists 18 years of age or older a pilot Online Pre-Licensing Course is now available.

(See <https://dmv.ny.gov/driver-license//prepare-your-road-test> and <https://dmv.ny.gov/driver-training/online-pre-licensing-course-providers>) When you complete the safe driving course in person, you will receive a certificate to show when you make your road test appointment. The certificate is valid for one year.

Note: The DMV-certified Point & Insurance Reduction Program (a.k.a. Crash Prevention Course or Defensive Driving Course) does NOT meet the Safe Driving course requirement.

Driver Education

To change your junior license to a senior license, bring your junior license and the Student Certificate of Completion (MV-285) that you received from your instructor to any motor vehicle office. You must return your certificate and junior license to receive the senior license. If you do not change your junior license to a senior license, you are subject to the restrictions for junior drivers until you are age 18, even if you carry the completion certificate with you. You can also give your certificate with your junior permit to the license examiner at your road test. You will automatically receive a senior license when you become eligible.” to “To change your junior license to a senior license, you must have a Student Certificate of Completion (MV-285) on file and bring your junior license to any motor vehicle office. You must return your junior license to receive the senior license. If you do not change your junior license to a senior license, you are subject to the restrictions for junior drivers until you are age 18, even if you have a completion certificate on file. You can also give your junior permit to the license examiner at your road test. You will automatically receive a senior license when you become eligible.

For Junior Drivers with Permits

Your permit must be held, in valid status for a minimum of six months in order to take the road test. When you pass the road test, you will be issued a Junior License (Class DJ or MJ). See “Regional Restrictions for a Junior License.”

A DMV motor vehicle license examiner will conduct the road test. You must give the license

examiner your 5-hour pre-licensing course completion certificate (MV-278) or have a Student Certificate of Completion (MV-285) on file. You must also give your photo learner permit and a completed Certification of Supervised Driving (MV-262).

The Certification of Supervised Driving (MV-262) is available from the DMV website dmv.ny.gov and at any motor vehicle office. With this statement, your parent or guardian certifies that you completed at least 50 hours of practice driving, including at least 15 hours after sunset, with an appropriate supervising driver (See chart “Regional Restrictions for a Junior Permit” later in this chapter).

You must bring a vehicle to drive during the road test. The vehicle must be correctly registered, inspected, insured and equipped, and in good working order. This includes doors and seat belts. The passenger side seat belt must be available and clean for use by the examiner. If you drive to the road test site, you must also bring a supervising driver who is at least 21 and holds a license valid for the vehicle you will drive during the road test. Motorcycle applicants must bring a car or truck and a licensed driver to transport the license examiner during the test.

For All Other Drivers with Permits

When you take your road test, you must give the license examiner your photo learner permit. You must also give your 5-hour Pre-Licensing Course Completion Certificate (MV-278) or have a Student Certificate of Completion (MV-285) on file.

The Road Test

After you have completed the Safe Driving Course Requirement, and you feel you are ready for your road test, you can schedule your road test appointment using the Road Test Scheduling System online or by telephone at 1-518-402-2100. If you took your Pre-Licensing Course in person, you must have your Pre-Licensing Course Completion Certificate (MV-278) or have a driver education course Student Certificate of Completion (MV-285) on file before you schedule your appointment. When scheduling your appointment, you must have your Learner Permit with you.

You must also have your Pre-Licensing Course Completion Certificate (MV-278) with you or have a Student Certificate of Completion (MV-285) on file.

The DMV can cancel road tests because of bad weather. Check the website for any cancellation information.

After the Road Test

At the conclusion of the road test, the Examiner will give you instructions on how to receive your test results. An interim license that allows you to drive will be available to you online. Keep your interim license with your photo learner permit until you receive your photo driver license. You will receive your photo driver license in the mail, in about 2 weeks.

When you qualify for a license, you must continue to be careful and obey the traffic laws to gain experience as a capable driver. Many motorists enroll in a DMV-certified Crash Prevention Course to help them gain knowledge of safe driving practices and important highway safety issues. This course, commonly known as the Point and Insurance Reduction Program (PIRP), is available through private companies or corporations in New York State.

The course is available as a classroom course or online (called I-PIRP) and reviews time-tested safe driving tips and provides a summary of the vehicle and traffic laws. If you are eligible for point reduction, as many as four (4) points can be reduced from your driving record. (For more information on the point system, see The Point System in Chapter 2.) You can complete this course every 18 months for the purpose of point reduction. You can also qualify for a minimum 10% reduction in the base rate of liability and collision insurance premiums for three years. More information regarding the Point and Insurance Reduction Program, including lists of sponsors approved to provide this course, is available on DMV's website at <https://dmv.ny.gov/learn-more-about/pirp>.

JUNIOR OPERATOR RESTRICTIONS

Driving with a Junior License

- You cannot drive with more than one passenger under the age of 21 unless they are members of your immediate family.
- You and each passenger must wear a seat belt: one per person. Every child passenger must use a correct child restraint. (See: Chapter 8, "Seat Belts, Child Safety Seats, and Air Bags")
- Also see "Special Rules for Drivers with Junior Permits and Licenses," Chapter 2.

New York State also has additional restrictions that apply to drivers under the age of 18. Based on the Graduated Driver Licensing laws, if you have a Class DJ Driver License (also known as a Junior Operator License) you are restricted to where and when and who can be in the car with you when you drive. These restrictions are based on where you are driving and are best explained by the chart on the next page:

REGIONAL RESTRICTIONS FOR A JUNIOR LICENSE		
New York City (5 Boroughs)	Long Island (Nassau & Suffolk)	Upstate (All Other Counties)
5AM – 9PM	5AM – 9PM	5AM – 9PM
You must NOT drive.	You may drive alone only directly between your home and employment, a work-study program, a course at a college, university, or registered evening high school, a driver education course, or while engaged in farm employment. You may drive when accompanied by your licensed parent, guardian, person “in loco parentis”, driver education teacher, or driving school instructor.	You may drive without being accompanied.
9PM – 5AM	9PM – 5AM	9PM – 5AM
You must NOT drive.	You may drive alone only directly between your home and a work-study program, a course at a college, university, or registered evening high school, a driver education course, or while engaged in farm employment.	You may drive alone only directly between your home and employment or a school course. All other driving must be accompanied by your licensed parent, guardian, or person “in loco parentis”.

Driving Alone with a Junior License

Please see this important information:

If you hold a Junior License and drive in the counties of Nassau or Suffolk:

You can drive by yourself between home and your employment, which can include farm work, if you carry the correct proof of employment. Your employer can complete a Certificate of Employment (MV-58A), available from the DMV website (search under Forms) or at local motor vehicle offices. In the upstate counties only, instead of an employment certificate, you can carry a letter from your employer. The letter must be marked with a date and signed by your employer, and must show the business name, address and telephone number where you work.

It also must list your name, date of birth, driver license number, job description, and days, hours and location of employment. The address and telephone number at which the employer can be contacted must be included for verification by a magistrate or police officer.

When you drive by yourself between your home and a qualified school course or approved work-study program, you must carry proof of enrollment. This must be a letter, marked with a date and signed by an appropriate school or program official, on the school or program letterhead. It must include the address and telephone number of the official for verification by a magistrate or police officer. The letter also must include the date(s), hour(s) and location(s) of the school course or program activity, your name, date of birth, and driver license number.

Motorcyclists and Moped Operators

The restrictions in this manual also apply to operating a motorcycle or moped. Your learner permit or junior license (Class M or MJ) does not allow you to carry any passenger except your supervising driver. Your supervising driver must have a driver license valid to operate the same class motorcycle or moped you are driving, and must exercise general supervision and control by remaining within one-quarter mile. It is strongly recommended that your supervising driver be able to see you at all times.

NYS Drivers Visiting Other States

You can drive outside New York State with your learner permit, junior learner permit or junior license if it is allowed by the laws of the other state. You must obey that state's permit, junior permit and driver license restrictions that may apply. Ask the police or motor vehicle authorities in the state you are visiting.

CHANGE OF ADDRESS

If you change your address you must notify DMV within 10 days by mail, on a Change-of-Address Form (MV-232), or online at the DMV website dmv.ny.gov. You must write the new address in the space provided on the back of your driver license.

LICENSE RENEWAL

You are responsible to know when your driver license expires and to renew it on time. If the DMV has your current address, you should receive a renewal notice and instructions in the mail approximately 45 days before your license expires. If you do not receive the notice, you can apply for renewal at a motor vehicle office. You can renew your license up to one year before its printed expiration date.

Beginning May 3, 2023, the federal government will require your driver license, permit or ID card to be REAL ID compliant if you wish to use it as identification to board a domestic flight (within the U.S.), or enter military bases and certain federal facilities. You may also use an Enhanced

driver license, permit, or non-driver ID or valid U.S. Passport or other identification acceptable to the federal government. To get a REAL ID, you will need to go to a DMV Office on or after October 30, 2017. You cannot get a REAL ID online, by phone, or through the mail.

To get a Real ID you MUST bring to the office the following original or certified proof documents:

- Proof of identity.
- Proof of Social Security number or Social Security number ineligibility.
- Proof of your date of birth.
- Proof of U.S. citizenship, lawful permanent residency or temporary lawful status in the U.S.
- Two proofs of New York State residence such as utility bill or mortgage statement (P.O. Box not acceptable). This address will be displayed on your card.
- The application process also requires the DMV to take a new photo.

If you decide you do not want a REAL ID or Enhanced document, your license most likely can be renewed through the mail or through the DMV website, but be advised that any license, permit or ID card issued after October 30, 2017 will be marked "Not for Federal Purposes". If you renew by mail or through the DMV website you must prove you have passed an eye test within the past six months or within one year as determined by a licensed health care professional before the date you renew your license. To renew by mail, you must return to the DMV your renewal application and a completed Eye Test Report (MV-619) which documents that you passed the vision test. If you renew through the DMV website dmv.ny.gov, you will need information from a completed Eye Test Report by your health care professional. An Eye Test Report form is available from the DMV website dmv.ny.gov (search under Forms) or at any motor vehicle office. Make sure to renew early if your license will expire while you are out of state. If you cannot renew early or a serious illness

prevents you from doing so, contact a DMV Call Center.

If you enter military service, your license can be automatically extended throughout your active service and for six months after discharge. You must notify the department within 60 days of the entry date into service. You must submit the form, Notification of Military Service (MV-75), available from the DMV website (search under Forms) or at any motor vehicle office.

NON-RESIDENT AND NEW RESIDENT DRIVERS

If you are a resident of another state or country and hold a valid driver license there, you can legally drive in New York State. You should not apply for a New York driver license unless you become a resident of this state. Then, to remain legally licensed, you must apply for a New York driver license within 30 days after you establish you are a New York State resident.

If you are a new resident with a valid driver license issued by a U.S. state, territory or possession, or a Canadian province or territory, you must turn in your out-of-state license to get a New York driver license. You must show additional proof of name and date of birth (see "Applying for your First License"), and provide your social security number. You must pass the vision test. If your out-of-state license has been valid for less than six months or had expired more than one year ago, you must also pass the written and road tests and complete the safe driving course.

If you are a new resident licensed in a country other than Canada, you must pass the vision test, complete the safe driving course, turn in your foreign license, and you must pass a written and road test. When you pass the road test, you must give your foreign license to the DMV motor vehicle license examiner who conducted the test. Your foreign driver license will be destroyed unless you provide the examiner a written request to hold your foreign license on file at a New York State Department of Motor Vehicles office. The license examiner will tell you which DMV District Office will hold your foreign license. Your foreign

license will be returned at your request, but only after you return your New York license.

Drivers from Outside New York State

If you are under age 18 and hold a learner permit, junior permit or junior driver license from outside New York State, you must obey the restrictions described in this publication as well as the restrictions from your home state. Make sure your permit or license is valid to drive outside your home state before you operate a vehicle in New York. If you are less than 16 years of age, you cannot drive in New York State even if you have an out-of-state license.



CHAPTER 2 / HOW TO KEEP YOUR LICENSE

If you commit a serious traffic violation or several violations that are less serious, you can lose your driving privilege through suspension or revocation of your license.

“Suspension” means your license (or privilege to drive) is taken away for a period of time before it is returned. You may be required to pay a suspension termination fee.

“Revocation” means your license (or privilege to drive) is cancelled. To get a new license, you must re-apply to the Department of Motor Vehicles (DMV) once the revocation period is over. You may be required to pay a license re-application fee. Your application may be denied if you have a poor driving record or refuse to meet DMV requirements. Revocation periods may be longer than the minimum periods listed in this publication.

“Driving privilege” means the courtesy extended to out-of-state-drivers that allows them to drive a motor vehicle in New York State. It also refers to permission from New York State for a person without a license to get a New York driver license. A driving privilege can be suspended or revoked for the same reasons as are New York driver licenses. Driving with a suspended or revoked privilege carries the same penalties as driving with a suspended or revoked license.

SPECIAL RULES FOR DRIVERS WITH JUNIOR PERMITS AND LICENSES

Every driver with a junior permit or driver license could face sanctions and other penalties. For example, your permit, license or privileges will be suspended for 60 days if you are convicted of a serious traffic violation (three points or more) or two other violations.

Your junior permit, license or privileges will be revoked for 60 days if you are convicted of a serious violation (three points or more), or two other violations within the first six months after you receive your license or privileges back following suspension or revocation.

In addition, your junior permit, license or privileges will be suspended for 120 days when you are convicted of a texting or cell phone violation.

A junior permit must be held for a minimum of six months, excluding any time the permit is suspended or revoked, before a road test can be scheduled.

PROBATION PERIOD FOR ALL OTHER NEWLY LICENSED DRIVERS

If you are 18 or older when you pass your road test for a driver license, or obtain a license following revocation, you will be on probation for six months.

If you are convicted of DWAI (alcohol), speeding, reckless driving, following too closely, participating in a speed contest, or any two traffic violations while on probation, your license will be suspended for 60 days. Following the end of the 60-day suspension, a new six month probationary period will begin. If you are found guilty of one of the above violations or any two traffic violations during this second probationary period, your license will be revoked for at least six months. If your license is restored following the revocation, you will be on probation for another six months.

If you are convicted of a texting or cell phone violation, your probationary license will be suspended for 120 days.

IF YOU RECEIVE A TRAFFIC TICKET

If you receive a traffic ticket, do not delay – follow the instructions on the ticket for the plea you want to make. Your driver license will be suspended indefinitely. If you do not respond that you have received the ticket, you could be found guilty by default conviction.

The DMV Traffic Violations Bureau (TVB) processes the tickets for non-criminal moving traffic violations issued in the five boroughs of New York City. The TVB system allows the other courts in these areas to concentrate on criminal cases. This includes driving offenses like Driving While Intoxicated (DWI) and driving while suspended or re-

voked. In other areas of the state, traffic violations are processed in the criminal and traffic court of the city, county, town or village where the alleged offense occurred. No matter what court system is involved, every motorist who receives a traffic ticket can present a defense and be represented by a lawyer.

TRAFFIC TICKETS RECEIVED OUT OF STATE

The New York State Department of Motor Vehicles does not record convictions of moving traffic violations by NYS non-commercial licensed drivers in other jurisdictions, except traffic offenses committed in the provinces of Ontario and Quebec in Canada. Out-of-state traffic convictions, except for Ontario and Quebec, are not added to your New York State "violation point" driving record.

However, your New York driver license will be suspended if you fail to answer a ticket for a moving traffic violation in any state except Alaska, California, Michigan, Montana, Oregon, Virginia or Wisconsin. Your license will remain suspended until you answer the ticket. For clearance of your NYS driver license or permit you must submit proof to the NYS Department of Motor Vehicles that the ticket has been satisfied. If you are a driver from any state, except one of the six states listed above, you will have your driver license suspended in your own state if you fail to answer a moving traffic violation summons in New York State.

If you are over 21 years old and are convicted of an alcohol- or drug-related driving violation (e.g., DUI) in another state or in Canada, your New York driver license will be revoked for at least 90 days. Out-of-state drivers who get tickets in New York State can contact the motor vehicle department of their own state or province about how a conviction affects them.

If you are under 21 years old and convicted of any alcohol or drug-related violation that occurred out of state, your New York driver license will be revoked for at least one year. If you have any alcohol conviction your license will be revoked for at least one year or until the age of 21, whichever is longer.

The New York State Department of Motor Vehicles records the conviction of any New York driver for criminal negligence, homicide, or assault that arises from the operation of a motor vehicle and which results in death. The driver license or privilege to drive will be revoked and vehicle registrations may also be revoked. It does not matter if the conviction occurred in this state or another state.

MANDATORY SUSPENSION OR REVOCATION

Your driver license or driving privilege can be suspended or revoked for many reasons. **NOTE:** Motorboat and snowmobile operators less than 21 years old who drink alcohol face similar penalties and sanctions against their privileges to operate a motorboat or snowmobile. Examples of revocations and suspensions that are required by law:

Alcohol and Drug Violations (Also see Chapter 9: Alcohol and Other Drugs)

- Aggravated driving while intoxicated (Agg-DWI), with .18 of one percent blood alcohol content (.18 BAC): minimum one-year revocation.
- Driving while intoxicated (DWI), with .08 of one percent blood alcohol content (.08 BAC): minimum six-month revocation
- Driving while ability impaired by alcohol (DWAI): 90-day suspension.
- Driving while ability impaired by drugs (DWAI-drug): minimum six-month revocation
- Driving under the influence of alcohol or drugs out-of-state (DUI): minimum 90-day to six-month revocation, depending on conviction.

Chemical Test Refusals (Also see Chapter 9: Alcohol and Other Drugs)

- Chemical test refusal, drivers over age 21: minimum one-year revocation
- Chemical test refusal, drivers over age 21, within five years of a prior refusal revocation or any alcohol or drug-related violation: minimum 18-month revocation
- Chemical test refusal, drivers under age 21, first time: minimum one-year revocation
- Chemical test refusal, drivers under age 21, second time: Minimum revocation until age 21 or one year, whichever is longer
- Zero Tolerance test refusal: Minimum one-year revocation

Drivers Under Age 21

If you are under age 21 when arrested, conviction for any of the alcohol or drug-related violations listed above will result in a minimum one-year revocation. A second violation while under age 21 requires a revocation for one year or until you reach age 21, whichever is longer. These penalties apply to youthful offenders, or if you were arrested or convicted out of state (see Traffic Tickets Received Out-Of-State).

Under the state's "Zero Tolerance Law," a driver under age 21 will have their license suspended for six months if found to have a BAC from .02 to .07. A .02 BAC could occur from only one drink. For a second Zero Tolerance violation, the driver license will be revoked for one year or until the driver turns age 21, whichever is longer.

Speeding and Other Violations

Your driver license will be revoked for at least six months if you are found guilty of:

- Three speeding and/or misdemeanor traffic violations within 18 months (based on date of violation, not date of conviction).
- Three "passing a stopped school bus" violations within three years.
- One violation of "leaving the scene of a personal injury or fatal crash."
- One "participating in a speed contest" violation. Conviction of a second speed contest violation within 12 months results in a revocation of at least one year.

No Insurance

Your driver license will be revoked for at least one year if you operate or allow another person to operate your uninsured vehicle, or if the DMV receives evidence that you were involved in a traffic crash without being insured. If the insurance coverage for your vehicle has expired, you must turn in the license plates and registration to a motor vehicle office. If the vehicle is removed from the road and not being driven, you must return the plates or you can face civil penalties or registration suspension and/or license suspension.

Indefinite Suspensions/Revocations

Your driver license will also be suspended indefinitely if you fail to file an crash report, fail to pay child support, fail to pay taxes or fail to fulfill a court judgment that results from a traffic crash. This suspension will be in effect until you correct the condition that led to the suspension.

THE POINT SYSTEM

The DMV point system identifies "persistent violators", that is, drivers who commit a series of violations in a short time period. The table in this chapter lists the point values assigned to various moving traffic violations.* Note that traffic laws which must be obeyed on public highways, roads and streets also apply to parking lots open to the public.

While each violation, except for an alcohol or drug related violation or an aggravated unauthorized operation of a motor vehicle violation, listed alone is not serious enough to require license suspension or revocation, the accumulation of several violations on your driving record can indicate that action must be taken.

*All V&T Law violations result in fines to the driver in addition to license sanctions.

Violation	Points
Speeding MPH over posted limit:	
1 to 10 mph	3
11 to 20 mph	4
21 to 30 mph	6
31 to 40 mph	8
Over 40 mph	11
Aggravated Unlicensed Operation 1st, 2nd, or 3rd	11
DWI/DWAI/Aggravated DWI/DWAI Drugs/ Chemical Test Refusals	11
Speed in a construction zone	8
Over-height vehicle	8
Failed to stop for school bus	8
Reckless driving	5
Speed contests and races	5
Improper cell phone use	5
Use of portable electronic device "texting"	5
Railroad crossing violation	5
Leaving scene of a personal injury accident	5
Failure to exercise due care	5

Violation	Points
Facilitating aggravated unlicensed operation	5
Failed to yield the right-of-way	3
Red Light	3
Disobeying traffic control signal, STOP sign, or YIELD sign	3
Improper passing, changing lanes unsafely	3
Driving left of center, in the wrong direction	3
Leaving the scene of a property damage incident	3
Child safety restraint violation	3
Inadequate Brakes (employer's vehicle)	4
Most other moving violations	2
Failure to signal	2
Improper turn	2
Disobeying a traffic control device	2
Tinted window	0
No seatbelt driver/passenger 16 years or older	3
Unlicensed	0
Uninspected	0
Faulty equipment	0

Note: Insurance companies can have their own point systems. These have no relationship to and should not be confused with the DMV point system.

The point values charged against your record are from the date you commit the violation, not the date you are convicted. If you get 11 or more points within 24 months, you will be notified by mail that your driver license will be suspended. You can request a DMV hearing only to show that the convictions in question were not yours. You cannot re-argue the convictions or request the suspension be waived based on special circumstances.

You can reduce your point total by up to four points and save up to 10 percent on your auto liability and collision insurance premiums by taking a DMV-approved "Motor Vehicle Crash Prevention Course." Completion of a point reduction course cannot prevent a mandatory suspension or revocation or be applied as a "credit" against future points, or prevent or reduce a Driver Responsibility Assessment by the DMV.

TRAFFIC CRASHES

At this time, except where required by law, the term "accident" is frequently replaced by "crash." This is because a "crash" can normally be prevented. If you are involved in a traffic crash in which another person is killed, your license can be suspended or revoked after a DMV hearing even if you were not charged with a violation when the incident occurred.

FEES AND CIVIL PENALTIES

In most cases, if your driver license has been suspended for an exact period, like 30 days or 90 days, your license will not be returned until you pay a non-refundable \$50 suspension termination fee. If your license was suspended as a result of the Zero Tolerance Law, you will be required to pay a \$125 civil penalty and a \$100 suspension termination fee.

In most cases, if your driver license has been revoked, you cannot apply for a new license until you pay a non-refundable \$100 fee to reapply for the license. This fee is not required if your license was revoked for operating without insurance or if you were issued a license with conditions or restricted uses.

Vehicle Owners - A law was passed in 2019 that authorizes school districts and municipalities to use stop-arm cameras on school buses to impose penalties on the owners of vehicles which pass a school bus while the school bus is stopped for the purpose of dropping off or picking up passengers and red lights on the school bus are flashing.

- First violation - penalty of \$250
- Second violation within 18 months - penalty of \$27
- Third violation (or more) within 18 months - penalty of \$300

After the following revocations, you must pay a civil penalty to DMV before your application for a new license can be accepted:

- Operating without insurance or crash without insurance: \$750 civil penalty.
- Chemical test refusal: \$500 civil penalty (\$550 if while driving a commercial motor vehicle).
- Chemical test refusal within five years of an earlier alcohol, drug or refusal-related revocation: \$750 civil penalty.

DRIVER RESPONSIBILITY ASSESSMENTS

In addition to any fines, fees, penalties and surcharges authorized by law, you may have to pay a "Driver Responsibility Assessment" for some violations that result in a conviction or administrative finding. Your learner permit, driver license or driving privileges will be suspended if you do not make these payments.

If you are convicted of Aggravated Driving While Intoxicated (Agg-DWI), Driving While Intoxicated (DWI), Driving While Ability Impaired (DWAI), Driving While Ability Impaired by Drugs, DWAI-alcohol combined with drugs, or if you refused to submit to a chemical test, you will be required to pay a driver responsibility assessment of \$250 each year for the next three years.

If you are convicted of one or more traffic violations resulting in six points in any 18-month period, you will be required to pay \$100 each year for the next three years. For each additional point you receive during that period, you will be required to pay another \$25 per point every year for three years. For information about how points are assessed, see "The Point System" in this chapter.

This assessment applies to motorists convicted of violations while driving motor vehicles, and in some cases, motorboats and snowmobiles. Completion of a DMV-approved "Motor Vehicle Crash Prevention Course" will not prevent or reduce the calculation of points that affect the Driver Responsibility Assessment.

DRIVING WHILE SUSPENDED OR REVOKED

It is a criminal offense to drive while your license is suspended or revoked, and there are mandatory fines from \$200 to \$5,000. You can face mandatory imprisonment or probation. The vehicle being driven could be seized and forfeited. More severe penalties apply to drivers who drive while intoxicated or impaired by alcohol or drugs while their license or privilege are already under suspension or revocation for a previous alcohol or drug-related incident. Drivers with 10 or more suspensions for failure to answer traffic tickets are also subject to severe penalties. Drivers with 20 or more suspensions for failure to answer tickets face a criminal charge, even if you were not driving when arrested.

CHAPTER 3 / OWNING A VEHICLE

Whether you are a vehicle owner or registrant, or a driver of a vehicle owned or registered by someone else, it is your responsibility to make sure it is registered, insured and inspected before the vehicle operates on a public roadway.

REGISTRATION AND TITLE

A registration allows a vehicle to be driven on public roads and highways. A title certificate proves who owns the vehicle.

You must be at least 16 to register a vehicle. You can title a vehicle at any age. A new resident of the state must get a New York registration within 30 days of establishing residence.

To Register a Vehicle

To register a vehicle, you must prove you own the vehicle or that the owner authorizes you to register it, that the vehicle is insured, that the state and county sales taxes have been paid and provide any required odometer reading and/or damage disclosure statement. If the ownership proofs listed below are not available from the seller, contact any motor vehicle office or a DMV Call Center before you purchase the vehicle.

To apply for registration, you must complete a Vehicle Registration/Title Application (MV-82). You must also present proof of name (6 points) and proof of date of birth. For additional information see Registering a Vehicle in New York State (MV-82.1), available from the DMV website (search under Forms) or at any motor vehicle office. When your vehicle is registered, you will get vehicle plates, a registration document and a registration sticker for the windshield or vehicle plates. If you purchased the vehicle from someone other than a New York State registered dealership, you will also receive a 10-day inspection extension sticker on request when you register the vehicle. You must then have the vehicle inspected within 10 days from the date of registration. It should have a valid inspection sticker if you purchased the vehicle from a New York State registered dealer. The dealer must have the vehicle inspected within 30 days before they sell the vehicle to you.

When you purchase a new or used vehicle from a dealer registered with the DMV, the dealer can register the vehicle for you and give you a temporary registration and, if you need them, new vehicle plates. The dealer can charge a processing fee for this service. It can also charge registration, vehicle plate and title fees.

Your title certificate will be mailed to you several weeks after the vehicle is registered.

Proof of Ownership

If you purchase your vehicle from a New York State registered dealer, the proof of ownership for a new vehicle will be a Manufacturer's Certificate of Origin (MCO) and a dealer's Certificate of Sale (MV-50). For a used vehicle, proof of ownership is the previous owner's Certificate of Title (MV-999), the correct odometer and salvage disclosure statement and the dealer's Certificate of Sale (MV-50).

If the dealership does not register the vehicle for you, make sure it gives you the ownership documents listed above and a completed Application for Registration/Title (MV-82) signed by the dealer's representative. Examine the ownership documents carefully before closing the sale.

If you purchase a used vehicle from a dealer registered outside New York State – the proof of ownership is the title certificate or transferable registration signed over to the dealer by the previous owner, plus the bill of sale and/or invoice from the dealer and other proofs from the dealer.

For a used vehicle purchased from a private seller – the proof of ownership is the "Certificate of Title" (MV-999), or a transferable registration for 1972 or older models, signed over to you. The seller must complete and you must acknowledge with your signature, the correct odometer and damage disclosure statements.

Before you accept the title certificate from any seller, check the front of the title for the names and addresses of "lien" holders. A lien indicates the current owner owes money on a loan for the vehicle. If a lien is listed on the title, ask the seller to give you proof the lien has been paid – in most cases, it is an official lien release from the lender.

If proof is not provided and the loan has not been paid, the lien holder could repossess the vehicle.

A motor vehicle office will not accept a title certificate if the correct odometer or damage disclosure statement is not completed, or if information on the title is adjusted, erased or canceled. This includes any name or signature.

Disclosure Statements

- If you purchase a vehicle eight model years old or newer, the DMV will NOT register your vehicle or issue you a new title certificate unless the seller has completed, and you have signed, both the odometer and the damage disclosure statements on the Certificate of Title (MV-999). These statements indicate whether the new title certificate should be described as "Rebuilt Salvage."
- If you purchase a vehicle 10 model years old or newer, make sure the private seller has completed the odometer statement on the back of the Certificate of Title (MV-999). The damage disclosure statement is not required for vehicles nine model years old or older. As the buyer, you must confirm the odometer statement as shown on the title certificate by writing your initials next to the odometer box on the title certificate. Compare the odometer statement on the title certificate with the odometer reading in the vehicle.

IMPORTANT: The DMV must examine every vehicle described as "Rebuilt Salvage", OR SIMILAR WORDS, for stolen parts before the vehicle can be registered or titled. If you are to purchase a vehicle that is registered or titled out-of-state, contact a DMV Call Center for more information.

Proof of Sales Tax Payment

When you purchase a vehicle from a New York State registered dealer, the dealer collects the sales tax.

If you purchase a vehicle from someone other than a NYS registered dealer, you need to fill out a Statement of Transaction/Sale or Gift of Motor Vehicle (DTF-802), which is available at any motor vehicle office and from the DMV website dmv.ny.gov.

This form certifies the purchase price and determines the sales tax you must pay when you register the vehicle. One side of the form must be completed and signed by the buyer. The other side must be signed by the seller if the selling price is below fair market value or if the vehicle is being given as a gift from someone who is not a family member. If the form is not completed by the seller, you will be charged sales tax based on the current fair market value of the vehicle. Bring the completed form to a state or county motor vehicle office when you register your vehicle.

Proof of Insurance

When you purchase vehicle liability insurance, the insurance agent or broker gives you two insurance identification cards. The name(s) and vehicle identification number (VIN) on these cards must exactly match the information on the registration application. You must present one card when you register your vehicle. Keep the second card with the vehicle.

Fees

Registrations for most vehicles with a maximum gross weight of not more than 18,000 pounds (8,165 kg) are valid for two years, and fees are based on vehicle weight. There are also vehicle plate and title fees.

By law, registration fees cannot be refunded if you use the vehicle plates or registration sticker on your vehicle even for one day. However, if your vehicle plates and registration sticker are returned unused within 60 days after you register your vehicle, you can receive a full refund, minus a processing fee. You may receive a refund of the fee for the second year of a two-year registration, minus a processing fee, if you use the plates & registration only during the first year. Make sure to get a DMV Universal Receipt (FS-6T) to turn in your plates.

If you transfer a registration from one vehicle to a replacement vehicle, you will receive credit for the remaining part of your current registration. This credit cannot be applied to other vehicles registered to you.

Trading In or Selling Your Old Car

Before you trade in or sell your old vehicle, make sure to remove the vehicle plates and the windshield registration sticker, which shows your plate number. This can prevent you from being charged with parking tickets that are not yours.

REGISTRATION RENEWAL

Most registrations are renewed every two years. Approximately 45 to 60 days before your registration will expire, you should receive a renewal reminder in the mail. If you changed your address and did not notify the DMV, you will not receive the reminder. If you did not answer three or more parking tickets, or if your registration is suspended or revoked, you will not receive the reminder. Allow two weeks to process and deliver the registration. You are responsible to know when your registration expires and to renew it on time. This is true even if you do not get a reminder in the mail.

If the expiration date falls on a weekend or legal state holiday, your registration is automatically extended to midnight of the next business day. Make sure you maintain liability insurance on your vehicle during the extension period.

If you have not received a renewal notice, you may be able to renew your registration –

By mail: Complete a Vehicle Registration/Title Application (MV-82), available at any motor vehicle office and from the DMV website dmv.ny.gov (search under Forms). If your registration must be sent to an address that is not the mailing address you entered on the application form (MV-82), enclose a separate note that requests the DMV to mail your registration to the other address. Do not put this mailing address on form MV-82 unless you want it to appear on the registration and your DMV registration record. Reminder – if you indicate a change of address on your registration, it will affect ONLY that registration. Use a Change of Address Form (MV-232) to change all your DMV records. This form is available at any motor vehicle office and from the DMV website (search under Forms).

Enclose a check or money order for the correct fee, payable to the “Commissioner of Motor

Vehicles.” If you do not know the exact fee you must pay, you can determine the fee using the Schedules of Registration Fees (MV-204A) available at any motor vehicle office or through a work page at the DMV website. Make sure to include your insurance card with your renewal application if your insurance company has changed and you have not responded to a DMV Insurance Inquiry Letter.

Mail your completed Vehicle Registration/Title Application and other documents to:

**NYS DMV Utica Processing Center,
P.O. Box 359, Utica, NY 13503.**

Allow two weeks to receive your registration renewal. If you do not receive it after two weeks, contact a DMV Call Center or visit any state or county motor vehicle office. Allow more time for overseas mail.

If your name has changed and you have not notified the DMV, you must visit a DMV office and show proofs of your identity. For more information, contact a DMV Call Center.

Online at the DMV website dmv.ny.gov: Online registration renewal requires that you have not changed your address or insurance company, and that the registration is for a passenger car, small commercial truck or a motorcycle that is not used exclusively off road. Your registration fee, and any related fees, will be displayed on the computer screen. In three quick steps, you can renew your registration online and use your credit card for payment. Your renewal will be automatically processed and mailed to you. Allow two weeks for delivery.

In person at a state or county motor vehicle office: You must complete and submit a Vehicle Registration/Title Application (MV-82). Note: An application brought into an office by a second party (someone who is not the registrant) must be accompanied by the original New York license/permit/non-driver identification card for the second party and either the original or a photocopy for the registrant. This includes spouses (husbands and wives). The application must be signed by the registrant, not the person who brings the form into the office.

Insurance

Your vehicle must be covered by liability insurance as long as it is registered, even if you do not drive it.

Minimum liability coverage is required of \$50,000 against the death of one person and \$100,000 against the death of two or more persons, \$25,000 against injury to one person and \$50,000 against injury to two or more persons and \$10,000 against property damage. Insurance coverage limits refer to death, injury or damage related to any one incident.

Before your liability insurance expires or is discontinued, return vehicle plates at any state or county motor vehicle office. Be sure to obtain a DMV Universal Receipt (FS-6T) to turn in your vehicle plates. If you do not do this, you may have to pay a civil penalty for each day the vehicle was not insured or your vehicle registration can be suspended. If your vehicle is not insured for 90 days, unless you have turned in your vehicle plates, your driver license will also be suspended.

If you receive a letter from DMV that asks about your vehicle insurance, read it carefully and respond as directed in the letter.

Motorcycles must be insured, but you are not required to turn in the vehicle plate when your motorcycle insurance is discontinued or expires.

RESIDENT AND NON-RESIDENT RESPONSIBILITY

Anyone who drives or permits a vehicle to be driven in New York State, this includes people who are not New York residents, must be able to prove the vehicle has acceptable liability insurance, (see "Insurance," above, for minimum insurance coverage required). If you are convicted of driving an uninsured vehicle or if you allow another person to drive your uninsured vehicle, your license or privilege to drive in New York State will be revoked for at least one year. The same penalty applies if the DMV receives evidence that you were involved in a traffic crash without insurance.

INSPECTION

Most vehicles sold in New York State must be inspected within 30 days of the date of transfer or sale and must have a certificate of inspection before delivery. If you purchase a vehicle from someone who is not a NYS dealer, you must have the vehicle inspected within 10 days after you register it. Make sure to request a "Ten-Day Time Extension for Motor Vehicle Inspection" (VS-1077). If a person moves to NYS, an inspection certificate that was issued before is valid until it expires or one year from the date it was issued, whichever occurs first.

Under some conditions, vehicles sold at retail are exempt from the inspection requirement. These conditions are: transfer to a "welfare to work" program; transfer of a chassis; transfer of a vehicle through factory direct delivery; transfer of a vehicle for registration in another state or country; transfer of a scrap vehicle; and transfer of a vehicle to a long-term lessee (lease buyout).

After the first inspection of your vehicle, it must be inspected at an official state-licensed inspection station before the expiration date on the current inspection certificate. An inspection is also required on change of registrant. Inspection stations have yellow and black "Official Motor Vehicle Inspection Station" signs. Heavy trucks, buses, tractors and semi-trailers must be inspected at special "Heavy Vehicle" Inspection Stations and motorcycles at special Motorcycle Inspection Stations.

Putting your signature on a registration renewal form certifies that the vehicle was inspected as required by law. Keep track of when your annual inspection is. Schedule a new inspection early, so you will have time to repair your vehicle if it does not pass.

After inspection, the vehicle inspector will issue a sticker for the vehicle to prove it has passed inspection. If your vehicle did not pass, the inspector will give you a rejection notice. In most cases, your vehicle must be repaired to meet standards and must be inspected again. A vehicle that is

subject to a high enhanced or OBD II emissions inspection that fails a first inspection can qualify for a waiver. An attempt must be made to repair the malfunction and the cost for repairs must be at least \$450. Many gasoline-powered vehicles (except motorcycles) must be inspected for exhaust emissions during the safety inspection. Exceptions are gasoline-powered vehicles that are 26 or more model years old, or less than two model years old, or registered as historic. Those vehicles are subject to a safety inspection only.

Diesel-powered vehicles that operate in NYS, even if registered elsewhere, are subject to random roadside safety tests by the NYS Police and the NYS Department of Transportation. Vehicles with a gross vehicle weight rating (GVWR) more than 8,500 pounds are subject to a Diesel fuel emissions inspection.

COMPLAINTS AGAINST BUSINESSES

The DMV regulates motor vehicle dealers, inspection stations and auto repair shops. These businesses should be identified by registration or

license certificates and outside signs. Make sure you are dealing with a registered or licensed business.

If you have a complaint against one of these businesses, first try to resolve it with the management. If that fails, call (518) 474-8943 between 8:30 a.m. and 4:15 p.m. weekdays. You can also write to Vehicle Safety Services, DMV, Bureau of Consumer and Facility Services, Box 2700-ESP, Albany, N.Y., 12220-0700. By regulation, the DMV can receive a repair shop complaint only within 90 days or 3,000 miles (4,828 km) of the vehicle repairs, whichever comes first.



PART 2

RULES OF THE ROAD

CHAPTER 4 / TRAFFIC CONTROL

SIGNS

Traffic signs tell you about traffic rules, special hazards, where you are, how to get where you are going and where services are available.

The shape and color of traffic signs give indications to the type of information they provide:

REGULATION SIGNS normally are white rectangles with black letters or symbols, but some are different shapes, and some can use red letters or symbols.

WARNING SIGNS normally are yellow and diamond-shaped, with black letters or symbols.

DESTINATION SIGNS are green with white letters and symbols.

SERVICE SIGNS are blue with white letters and symbols.

Know the signs shown below and what they indicate. You will be asked about them on your written test.

Here are descriptions of common traffic signs and what they indicate.

REGULATION SIGNS

Stop Sign

COLOR: Red, with white letters



MEANING: Come to a full stop, yield the right-of-way to vehicles and pedestrians in or heading toward the intersection. Go when it is safe. You must come to a stop before the stop line, if there is one. If not, you must

stop before you enter the crosswalk. (See “Stop Crosswalk Lines” under the “Pavement Markings” section of this chapter.) If there is no stop line or crosswalk, you must stop before you enter the intersection, at the point nearest the intersection that gives you a view of traffic on the intersecting roadway.

Yield Sign

COLOR: Red and white, with red letters.



MEANING: Decrease speed as you reach the intersection. Prepare to stop and yield the right-of-way to vehicles and pedestrians in or heading toward the intersection. You must come to a full stop at a YIELD sign if traffic conditions require it. When you approach a YIELD sign, check carefully for traffic, and be prepared to stop.

Other Regulation Signs

COLOR: White, with black and/or red letters or symbols



MEANING:

These signs give information about rules for traffic direction, lane use, turns, speed, parking and other special requirements.

Some regulation signs have a red circle with a slash over a symbol. This indicates that an action, like a right turn, is not allowed or that some vehicles are restricted from the road. Rectangular white signs with black or red letters or symbols are indications to be alert for special rules.

WARNING SIGNS:

COLOR: Yellow, with black letters or symbols

MEANING: You are approaching a hazardous location or a location where there is a special rule, as shown in the sample signs. Sometimes a warning sign is joined with a yellow and black "recommended speed" sign. This indicates reduced speed is advised in that area.



Work Area Signs

COLOR: Orange, with black letters or symbols

MEANING: People are at work on or near the roadway and traffic can be controlled by a flag person. A work area speed limit as low as 25 MPH (40 km/h) can be posted. Even if no speed limit is provided, you must drive at a reduced speed through the work zone and you must always obey the flag persons. These illustrations show some signals a flag person will use. Know and obey them.



DESTINATION SIGNS:

COLOR: Green, with white letters

MEANING: Show the direction and distance to locations.



Route Signs

COLOR: Varied.

MEANING: Indicate interstate, U.S., state or county routes. The shape tells you the type of route you are on. The sample signs, left to right, are for state, U.S., and interstate routes. When you plan a trip, use a highway map to decide which routes to take. During the trip, watch for destination signs so you will not get lost, or have to turn or stop suddenly.



SERVICE SIGNS:

COLOR: Blue, with white letters or symbols

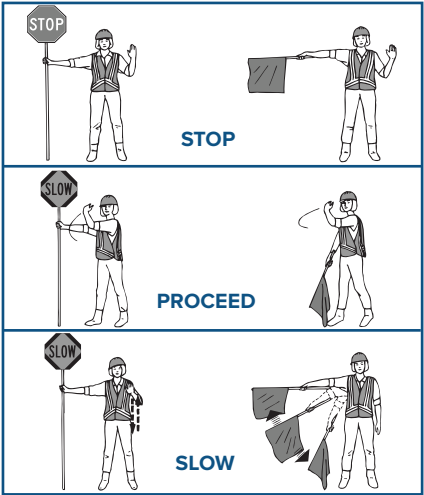
MEANING: Show the location of services, like rest areas, gas stations, camping or medical facilities.



TRAFFIC SIGNALS

Traffic Lights

Traffic lights are normally red, yellow and green from the top to bottom or left to right. At some intersections, there are lone red, yellow or green lights. Some traffic lights are steady, others flash. Some are round, and some are arrows. State law requires that if the traffic lights or controls are out of service or do not operate correctly when you approach an intersection, you must come to a stop as you would for a stop sign. You must then continue according to the rules of right-of-way, unless you are told to continue by a traffic officer.



Here is what different traffic lights indicate:

STEADY RED: Stop. Do not go until the light is green. If a green arrow is shown with the red light, you can go only toward the arrow and only if the intersection is clear.

You can make a right turn at a steady red light after you come to a full stop and yield the right-of-way to oncoming traffic and pedestrians. You can make a left turn at a steady red light when you turn from a one-way road into another one-way road after you come to a full stop and yield the right-of-way to oncoming traffic and pedestrians.

You cannot make a turn at a red light if there is a NO TURN ON RED sign posted or another sign, signal or pavement marking prevents the turn. You are not allowed to turn on a red light in New York City unless a sign that permits it is posted.

The driver of a school bus containing students cannot turn right on any red light.

FLASHING RED: Means the same as a STOP sign: Stop, yield the right-of-way, and go when it is safe.



RED ARROW: Do not go in the direction of the arrow until the red arrow light is off and a green light or arrow light goes on. A right or left turn on red is not permitted at a red arrow.

STEADY YELLOW: Be prepared to stop. A steady yellow light means the traffic signal is about to turn red.



FLASHING YELLOW: Drive with caution.

YELLOW ARROW: The protection of a green arrow will end. If you intend to turn in the direction of the arrow, be prepared to stop.

STEADY GREEN: Go, but yield the right-of-way to other traffic at the intersection as required by law (see Chapter 5).



GREEN ARROW: You can go in the direction of the arrow, but you must yield the right-of-way to other traffic at the intersection as required by law (see Chapter 5).



Lane Use Control Lights

Special above the pavement lights are sometimes used to indicate which lanes of a highway can be used at certain times:

STEADY RED "X": Do not drive in this lane.

STEADY YELLOW "X": Move from this lane.

FLASHING YELLOW "X": This lane can only be used for a left turn.

GREEN ARROW: You can use this lane.

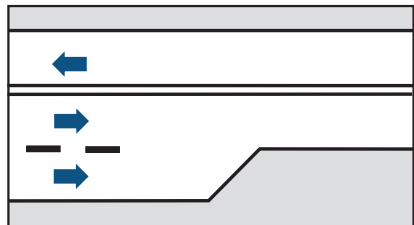
PAVEMENT MARKINGS



Lines and symbols on the roadway divide lanes and tell you when you can pass other vehicles or change lanes. They also tell you which lanes to use for turns and where you must stop for signs or traffic signals. The arrows on these illustrations show the direction of traffic.

Edge and Lane Lines

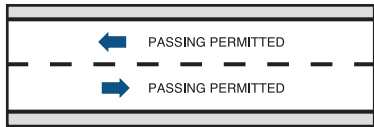
Solid lines along the side of the road tell you where its edge is – where the travel lane ends and the shoulder begins. It is illegal to drive across the edge line, except when told to by a police officer or other authorized official or when allowed by an official sign. An edge line that angles towards the center of the road shows that the road is narrower ahead.



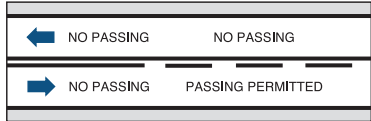
Lines that separate lanes of traffic that move in the same direction are white. Lines that separate traffic that moves in opposite directions are yellow. There may be two lines between lanes and lines can be solid or broken. Read Chapter 6 for the Rules on how to pass other vehicles.

What some lane lines indicate:

One broken line: You can pass other vehicles or change lanes if you can do so safely without interfering with traffic.



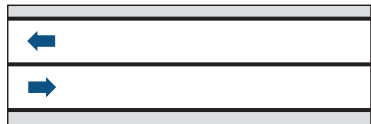
Solid line with broken line: If you are on the side with the solid line, you cannot pass other vehicles or go across the line except to make a left turn into a driveway. If you are on the side with the broken line, you can pass if it is safe to and you will not interfere with traffic.



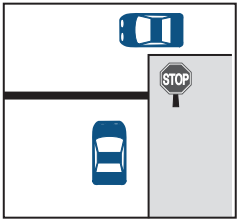
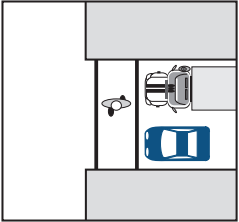
Double solid lines: You cannot pass or change lanes. You cannot go across the lines except to turn left to enter or leave the highway (e.g. to or from a driveway or to do a U-turn, see Chapter 5).



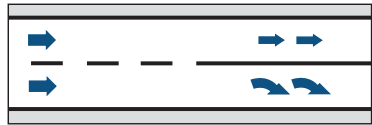
One solid line: You can pass other vehicles or change lanes, but you can only do so when obstructions in the road or traffic conditions make it necessary.



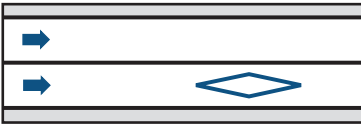
Stop and Crosswalk Lines: At an intersection controlled by a STOP sign, YIELD sign or traffic light, there can be a white stop line painted across the lane, (called a Stop Line) and/or two parallel lines painted across the road (called a Crosswalk). When required to stop because of a sign or light, you must stop before you reach the stop line, if there is one, or the crosswalk. You need only stop at a stop line or crosswalk if required to by a light, sign or traffic officer, or to yield to a pedestrian, in-line skater or scooter at a marked or unmarked crosswalk. A single stop line may be placed at intersections to allow room for larger vehicles (such as tractor-trailers, buses, and trucks) to turn without forcing other traffic to back up. It's important that you stop before you reach this stop line (See "Pedestrians" in Chapter 11).



Arrows: Arrows show which lanes you must use. In this illustration, for example, you can turn right only from the right lane. To go straight, you must use the left lane. You must be in the correct lane before you reach the solid line that separates the lanes.



Diamond Symbol: This symbol indicates the lane is reserved lanes for buses, HOV (High-Occupancy Vehicles) like car-pools and van-pools, bicycles or other special vehicles. You cannot enter and use these lanes unless your vehicle complies with the occupancy or other requirements indicated by signs for the times the special conditions are in effect. When used to designate reserved lanes on city streets, sections of the solid white line that separates the diamond lanes from the normal lanes can be replaced by broken white lines. In these locations, non-HOV can enter the HOV lane if they make a right turn at the next intersection. Bus lanes and HOV lanes are to promote the most efficient use of limited street and highway capacity. They assure that vehicles with the highest importance move the fastest.



TRAFFIC OFFICERS

Directions given by traffic officers take precedence over signs, signals or pavement markings. If a traffic officer signals you to stop at a green light, for example, you must stop. If an officer signals you to drive through a red light or stop sign, you must do it.

Among the persons authorized to direct traffic are police officers, fire police, highway work area flag persons and school crossing persons, and school bus drivers.

QUESTIONS

Before you move on to Chapter 5, make sure you can identify the signs in this chapter and know what they mean. Also, make sure you can answer these questions:

- What must you do at a STOP sign?
- What must you do when you encounter each of the following: a flashing red light, flashing yellow light, steady yellow light, a red light with a green arrow?
- What does it indicate if an edge line angles in toward the center of the road?
- What do each of these lines indicate: one broken, one solid, double solid, solid and broken together?
- If an intersection has crosswalk lines but no STOP line, where must you stop for a red light at that intersection?
- What type of pavement marking shows you which lane you must use for a turn?
- Which of the following must you obey over the other three: red light, flashing red light, STOP sign, police officer?
- A regulation sign is normally what shape?
- What is the normal color and shape of a warning sign?
- What color and shape is a destination sign?

CHAPTER 5 / INTERSECTIONS AND TURNS

Most traffic crashes occur at intersections when a driver makes a turn. Many occur in large parking lots like at shopping centers. To prevent this type of crash, you must understand the right-of-way rules and how to make correct turns.

RIGHT-OF-WAY

Traffic signs, signals and pavement markings do not always resolve traffic conflicts. A green light, for example, does not resolve the conflict of when a car turns left at an intersection while an approaching car goes straight through the intersection. The right-of-way rules help resolve these conflicts. They tell you who goes first and who must wait in different conditions.

Here are examples of right-of-way rules:

- A driver who approaches an intersection must yield the right-of-way to traffic that is in the intersection.

Example: You approach an intersection. The traffic light is green and you want to drive straight through. Another vehicle, is already in the intersection making a left turn. You must let that vehicle complete its turn before you enter the intersection.

- If drivers approaching from opposite directions reach an intersection at about the same time, a driver that turns left must yield to traffic that moves straight or turns right.

Example: You want to turn left at an intersection ahead. A vehicle reaches the intersection from the opposite direction and moves straight ahead. You must wait for approaching traffic to go through before you turn. You may enter the intersection to prepare for your left turn if the light is green and no other vehicle ahead of you plans to make a left turn (see “Turns” later in this chapter). When you enter the intersection, keep to the right of the center line. Keep your wheels straight to prevent being pushed into oncoming traffic if your vehicle is hit from behind. When traffic headed toward you clears or stops for a red light, complete your turn when you can do so safely.

You must also yield to traffic headed toward you when you turn left into a driveway, parking lot or other area, even if there are no signs or signals that control the turn.

For any left turn, the law requires you to yield to any traffic headed toward you that is close enough to be a hazard. The decision about when traffic is too close takes experience and judgment. If you have any concern, wait for traffic to pass before you turn left.

- At intersections not controlled by signs or signals, or where two or more drivers stop at STOP signs at the same time and they are at right angles, the driver on the left must yield the right-of-way to the driver on the right.

Example: You are stopped at a stop sign and you are going to go straight through the intersection. A driver on the cross road has stopped at a stop sign on your right and is also going to go straight. You must yield the right-of-way to the other driver.

- A vehicle that enters a roadway from a driveway, private road or another place that is not a roadway, must stop and yield the right-of-way to traffic on the roadway and to pedestrians.

Example: You intend to leave a parking lot and turn right when you enter a street. You are driving out of a parking lot and turn right as you enter a street. A vehicle approaches from your left. You must stop and wait for the vehicle to pass before you enter the street. If you were to turn left, you would have to yield to vehicles that approach from both directions. If a pedestrian walked across the parking lot exit, you would have to wait for that person to go across.

- Drivers must yield to pedestrians who legally use marked or unmarked crosswalks. This means you must slow down or stop if necessary. In all situations, drivers must take care to avoid colliding with pedestrians and bicyclists.

Example: You are stopped at a red light. A pedestrian steps into the crosswalk, and then the light turns green. You must wait for the pedestrian to go across. You must also yield to pedestrians in

crosswalks on your left or right before you turn.

- You cannot enter an intersection if traffic is backed up on the other side and you cannot get completely through the intersection. Wait until traffic ahead clears, so you do not block the intersection.
- Be alert to cross-streets or offset intersections, so that you don't cause gridlock by blocking another street.
- A driver who approaches a traffic circle or rotary must yield the right-of-way to drivers already in the circle. (For more information on how to drive in a rotary see "How to Drive Through a Roundabout" in Chapter 8 of this manual.)

EMERGENCY VEHICLES

You must yield the right-of-way to fire, ambulance, police and other authorized emergency vehicles when they respond to emergencies. They will display lights that are flashing red, red and blue or red and white and/or may sound a siren or air-horn. (Vehicles responding to emergencies for a Police Department, Sheriff Department or the New York State Troopers are not always required to use an audible siren or horn.) When you hear or see an emergency vehicle heading toward your vehicle from any direction, safely pull over immediately to the right edge of the road and stop. Wait until the emergency vehicle passes before you drive on. If you are in an intersection, drive out of it before you pull over.

You must pull over and stop for an emergency vehicle even if it is headed toward you in the opposite lane of a two-way roadway.

If you hear a siren or air-horn close by but do not know exactly where the emergency vehicle is, you must safely pull over to the right-side edge of the road and stop until you are sure it is not headed toward you.

An emergency vehicle that uses lights and a siren or air-horn can be unpredictable. The driver can legally exceed the speed limit, pass red lights and STOP or YIELD signs, go the wrong way on

one-way streets and turn in directions not normally allowed. Although emergency vehicle drivers are required to be careful, you must be cautious when an emergency vehicle heads toward you.

Move Over Law

This law requires every driver to exercise care to avoid colliding with an authorized emergency or hazard vehicle that is parked, stopped or standing on the shoulder or any portion of the highway with its emergency lights activated or one or more amber hazard lights activated or combination of one or more amber hazard lights and one or more blue lights activated. Drivers must reduce speed on all roads when encountering such vehicles, but on parkways, interstates and other controlled access roads with multiple lanes, drivers are further required to move from the lane adjacent to the emergency or hazard vehicle unless traffic or other hazards prevent doing so safely. Drivers are also required to move over for vehicles with blue and green lights which are described in the next section. Drivers are also required to move over for motor vehicles which are parked, stopped or standing on the shoulder or any portion of a parkway or controlled-access highway. Violations of this law are punishable as a moving violation.

BLUE, GREEN AND AMBER LIGHTS

Personal vehicles driven by volunteer fire fighters responding to alarms are allowed to display blue lights and those driven by volunteer ambulance or rescue squad members can display green lights. Amber lights on hazard vehicles such as snow plows and tow trucks or the combination of amber lights and rear projected blue lights on hazard vehicles designed for towing or pushing disabled vehicles, warn other drivers of possible dangers. Flashing amber lights are also used on rural mail delivery vehicles and school buses to warn traffic of their presence. The vehicles that display blue, green or amber lights are not authorized emergency vehicles. Their drivers must obey all traffic laws. While you are not required to yield the right-of-way, you should yield as a courtesy if you can safely do so.

TURN

Always signal before you turn or change lanes. It is important that other highway users know your intentions. The law requires you to signal a turn or lane change with your turn lights or hand signals at least 100 feet (30 m) ahead. A good safety tip is, when possible, to signal your intention to turn before you begin to brake or make the turn. The proper hand signals are shown below.



Remember these other tips when you prepare to turn:

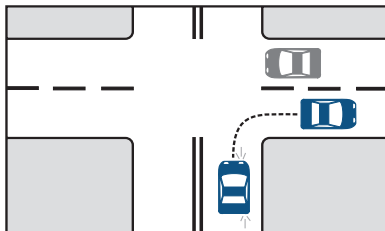
- Reduce your speed.
- Be alert for traffic on all sides. Take special caution to check for motorcycles. Most crashes that involve motorcycles and other vehicles are caused because the driver of the other vehicle has failed to see the motorcycle.
- Keep your wheels straight until you actually begin to make your turn. If your wheels are turned, and you are hit from behind, your vehicle could be pushed into the oncoming lane of traffic.
- Remember that your rear wheels will travel inside the path of the front wheels, nearer to the curb (right turn) or to traffic headed toward you (left turn).
- Watch for pedestrians, bicyclists and moped riders, especially on right turns. They are often difficult to see in traffic.
- Be especially alert to individuals in wheel chairs, people pushing strollers, or someone pulling a wheeled suitcase behind them. They may be closer to the ground and hidden behind a car.

The following illustrations show the correct position of your vehicle for turns. These positions

are from requirements in the law and are not just good advice.

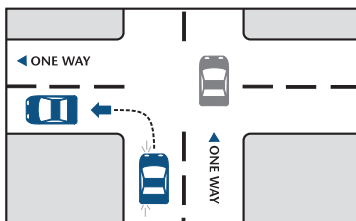
RIGHT TURN:

As you prepare to turn, get as far to the right as possible. Do not make wide, sweeping turns. Unless signs direct you to do otherwise, turn into the right lane of the road you enter.



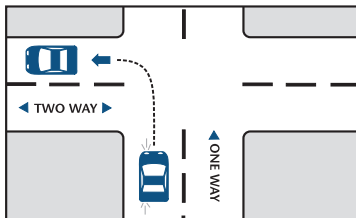
LEFT TURN FROM ONE-WAY ROAD INTO ONE-WAY ROAD:

Move into the left lane when you prepare to turn. If the road you enter has two lanes, you must turn into its left lane.



LEFT TURN FROM ONE-WAY ROAD INTO TWO-WAY ROAD:

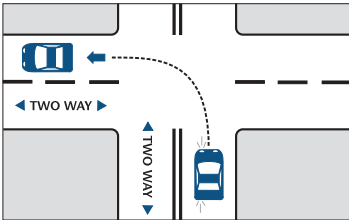
Approach the turn in the left lane. As you proceed through the intersection, enter the two-way road to the right of its center line, but as close as



possible to the center line. Be alert for traffic that approaches from the road to the left. Motorcycles are hard to see, and it is hard to judge their speed and distance away.

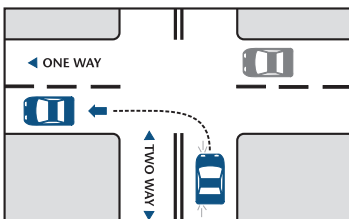
LEFT TURN FROM TWO-WAY ROAD INTO TWO-WAY ROAD:

Approach the turn from the right half of the roadway closest to the center. Try to use the left side of the intersection to help make sure that you do not interfere with traffic headed toward you that wants to turn left. Keep to the right of the centerline of the road you enter, but as close as possible to the center line. Be alert for traffic heading toward you from the left and from the lane you are about to go across. Motorcycles headed toward you are hard to see and it is difficult to judge their speed and distance away. Drivers often fail to see a motorcycle headed toward them and hit it while they turn across a traffic lane.

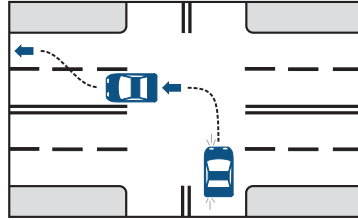


LEFT TURN FROM TWO-WAY ROAD INTO ONE-WAY ROAD:

Approach the turn from the right half of the roadway closest to the center. Make the turn before you reach the center of the intersection and turn into the left lane of the road you enter.



LEFT TURN FROM TWO-WAY ROAD INTO FOUR-LANE HIGHWAY:



Approach the turn from the right half of the roadway closest to the center. Enter the left lane, to the right of the center line. When traffic permits, you can move out of the left lane.

U-TURNS

A "U-turn" is any turn you make so you can proceed in the opposite direction.

Do not try a U-turn on a highway unless absolutely necessary. If you must turn around, use a parking lot, driveway or other area, and, if possible, enter the roadway as you move forward, not backing up.

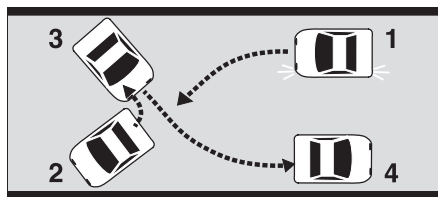
You can make a U-turn only from the left portion of the lane nearest to the centerline of the roadway, never from the right lane. Unless signs tell you otherwise, you can make a U-turn when you get permission to proceed by a green arrow left turn traffic signal, provided it is allowed and you yield to other traffic.

You cannot make a U-turn near the top of a hill, a curve or any other location where other drivers cannot see your vehicle from 500 feet (150 m) away in either direction. U-turns are also illegal in business districts of New York City and where NO U-TURN signs are provided. You can never make a U-turn on a limited access expressway, even if paths connect your side of the expressway with the other side. In addition, it is prohibited for a vehicle to make a U-turn in a school zone.

Unless prohibited, a three-point turn can be used to turn around on a narrow, two-way street. You may be required to make a three-point turn on your road test.

To make a three-point turn:

1. Signal with your right turn signal, then pull over to the right and stop. Signal with your left turn signal, then check carefully for traffic from all directions.
2. Turn left, go across the road so you come to a stop while you face the left curb or edge of the road.
3. Look again for traffic. Turn your steering wheel as far to the right as possible, then look behind you as you back up. Stop before you reach the right curb or any obstacle to the right curb or edge of the road.
4. Stop, check again for other traffic, then turn your steering wheel all the way to the left and pull forward to complete your turn when it is safe.

**QUESTIONS**

Before you go on to Chapter 6, make sure you can answer these questions:

- What is the hand signal for a stop?
- A right turn?
- If two drivers enter an intersection from opposite directions at the same time, and one travels straight, the other prepares to turn left, which must yield the right-of-way?
- If you enter an intersection to make a left turn, but oncoming traffic prevents the turn immediately, what should you do?
- If you reach an intersection that is not controlled at the same time as a driver on your right, and both of you prepare to go straight, who has the right-of-way?
- What must you do if you enter a road from a driveway?
- You face a green light, but traffic on the other side of the intersection does not allow you to travel all the way through the intersection. May you enter the intersection?
- Does a vehicle prepared to enter a traffic circle or rotary have right-of-way over vehicles in the circle?
- What will you do if you hear a siren nearby but cannot see where the emergency vehicle is?
- How far before a turn must you signal?
- When you prepare for a right turn, should you remain as near the center of the lane as possible?
- Where must you position your vehicle when you prepare to make a left turn from a two-way roadway into a one-way roadway?

CHAPTER 6 / HOW TO PASS

The law requires that we drive on the right side of the road. When we are allowed to pass other vehicles, we usually pass on the left. You are permitted to pass on the right only in certain circumstances and it must be done only when necessary and safe. When you pass other vehicles or change lanes to keep away from hazards, do so with caution and only when necessary. You must not exceed the speed limit to pass another vehicle.

When you pass a motorcycle, remember to give the motorcycle the same full-lane width as other vehicles are allowed. Never move into the same lane space as a motorcycle, even if the lane is wide and the motorcycle is to one side.

When you pass a bicycle, be sure to give the cyclist sufficient space to ride. When overtaking a bicyclist from behind, the law requires you to pass on the left at a safe distance until the bicycle has been cleared.

The law requires you to use turn signal lamps or hand and arm signals to indicate your intention to change lanes at least 100 feet (30 m) before you make a lane change. You must never pass a vehicle that has stopped at a crosswalk to allow a pedestrian to go across.

HOW TO PASS ON THE LEFT

The left lane is normally used to pass other vehicles. You cannot pass a vehicle on the left if:

- Your lane has a solid yellow center line.
- You cannot safely return to the right lane before you reach a solid yellow center line for the right lane.
- You cannot safely return to the right lane before any oncoming vehicle comes within 200 feet (60 m) of you.
- You approach a curve or the top of a hill on a two-way road and cannot see around or over it.
- You are within 100 feet (30 m) of a railroad crossing on a two-way roadway.
- You are within 100 feet (30 m) of a bridge, tunnel or viaduct on a two-way road and your view is obstructed.
- If you try to pass, you will interfere with oncoming traffic.

If conditions are correct to pass, check in your mirrors and signal your lane change. Before you pull into the left lane, look quickly over your left shoulder, through the back side window, to make sure there is no vehicle close behind you in the left lane. Never depend on your mirrors when you prepare to change lanes. Even correctly adjusted mirrors will leave "blind spots" behind both sides of your vehicle. If a vehicle is in the blind spot, you may not see it in your mirrors. Always quickly look over your shoulder before you change lanes or pass.

When you pass, move completely into the left lane. Before you return to the right lane, signal and look at your interior rear-view mirror and make sure you can see the front bumper of the vehicle you passed. Look quickly over your right shoulder to make sure that you can see at least several feet of pavement between your vehicle and the one you passed. Then return to the right lane.

HOW TO PASS ON THE RIGHT

You can normally pass other vehicles on the left, some situations allow you to pass on the right. You can pass a vehicle on the right only in the conditions listed below and only if you can pass safely. You cannot drive on or across the shoulder or edge line of the road unless a sign allows it or when indicated by a traffic officer (see Chapter 4). You can pass on the right:

- When a vehicle ahead makes a left turn.
- When you are on a two-way road that is marked for two or more lanes or is wide enough for two or more lanes in each direction and passing is not prohibited by signs or restricted by parked cars or other obstructions.
- When you drive on a one-way road that is marked for two or more lanes or is wide

enough for two or more lanes, and to pass is not prohibited by signs or restricted by parked cars or other obstructions.

If you prepare to pass on the right at an intersection, check the traffic ahead carefully. Make sure a vehicle that is approaching is not prepared to turn left into your path, and watch at the right side of the road for pedestrians, bicyclists, in-line skaters and moped riders.

Before a school bus stops to load or discharge passengers, the driver will usually flash yellow warning lights, which are located on the front and back of the bus near the roof. When you see them, decrease speed and be prepared to stop.

BEING PASSED

If another vehicle passes you on the left, decrease your speed slightly and stay centered in your lane. When the vehicle has safely passed and is ahead of you, continue at your normal speed.

If you find that you are being passed on the right by many vehicles, you should move into the right lane and allow them to pass you on the left.

SCHOOL BUSES

When a stopped school bus flashes its red light(s), traffic that approaches from either direction, even in front of the school and in school parking lots, must stop before it reaches the bus. You should stop at least 20 feet (6 m) away from the bus. You can identify this bus by a "SCHOOL BUS" sign, the red lights on the top and its unique yellow-orange color.

Before a school bus stops to load or discharge passengers, the driver will usually flash yellow warning lights, which are located on the front and back of the bus near the roof. When you see them, decrease speed and be prepared to stop.

When you stop for a school bus, you cannot drive again until the bus starts moving again or when the bus driver or a traffic officer signals that you can proceed. This law applies on all roadways in New York State. You must stop for a

school bus even if it is on the opposite side of a divided highway.

After you stop for a school bus, look for children along the side of the road. Drive slowly until you have passed them.

Safety Tip: Most school bus-related deaths and injuries occur while children cross the street after being discharged from the bus, not in collisions that involve school buses.

Remember that vehicles that transport people with disabilities can be equipped as school buses and you must stop for them as you would for other school buses.

The fine when you pass a stopped school bus ranges from a minimum of \$250 for a first violation to a maximum of \$1,000 for three violations in three years. If you are convicted of three of these violations in three years, your driver license will be revoked for a minimum of six months.

Vehicle Owners - A law was passed in 2019 that authorizes school districts and municipalities to use stop-arm cameras on school buses to impose penalties on the owners of vehicles which pass a school bus while the school bus is stopped for the purpose of dropping off or picking up passengers and red lights on the school bus are flashing.

- First violation - penalty of \$250
- Second violation within 18 months - penalty of \$275
- Third violation (or more) within 18 months - penalty of \$300

QUESTIONS

Before you go on to Chapter 7, make sure you can answer these questions:

- Under most conditions, on which side can you pass another vehicle that is headed the same direction?
- What should you do before you pass another vehicle?
- What should you see in your rear-view mirror before you attempt to return to the right lane after you pass a vehicle on the left?
- Under what conditions can you pass a vehicle on the right?
- When can you pass a vehicle stopped at a crosswalk to allow a pedestrian to go across?
- What action should you take when another vehicle passes you on the left?
- What do yellow lights going on and off on a school bus indicate?
- What do red lights going on and off on a school bus indicate?

CHAPTER 7 / PARALLEL PARKING

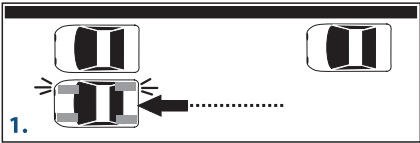
Parallel parking takes skill and is part of every road test. You must know where parking is illegal and what NO PARKING, NO STANDING and NO STOPPING signs indicate.

HOW TO PARK

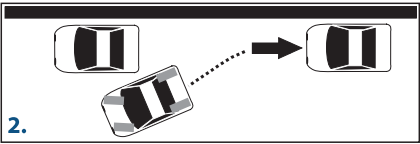
Many motorists consider parallel parking the most difficult part of driving. But practice will teach you how to back up correctly and to judge distances and angles.

Some vehicles have additional safety equipment (such as back up cameras and range-detecting sensors) to help the driver back up safely. Some vehicles can even park themselves (in certain conditions). Although these can be useful features, you need to be alert and check the area behind your vehicle before you back up. YOU – as the driver – are ultimately responsible for the safe operation of your vehicle.

The following instructions are general. You must adjust parallel-parking procedures to the particular situation. Practice is the only method to learn correctly.

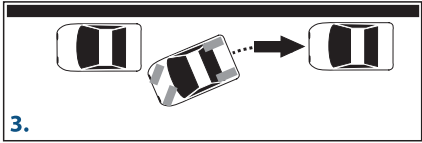


1. Select a space that is large enough for your vehicle on your side of the road. Check your mirrors before you stop and signal to warn other drivers. Stop next to the vehicle in front of the space and leave about two feet between the other vehicle and your vehicle.

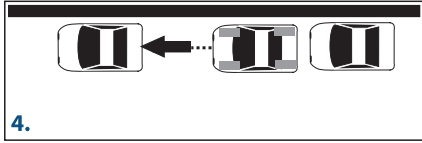


2. Look behind you over both shoulders to make sure you will not interfere with pedestrians or on-coming traffic. Back the vehicle slowly and begin

to turn your steering wheel completely toward the near curb. Look through the rear window, not the mirrors, when you back up. Look to the side and front occasionally to make sure you will not touch the vehicle ahead.



3. When your front wheels are opposite the back bumper of the vehicle ahead, turn the steering wheel the other way while you continue to back up. Make sure you clear the vehicle ahead. Look back and stop to ensure that you do not bump the vehicle behind you.



4. Bring your wheels straight and pull forward. Allow room for the vehicles ahead and behind you. In your final parking position, your wheels must be no more than one foot (30 cm) from the curb.

To get nearer to the curb, alternately pull forward and back up, and turn the steering wheel first toward the curb and then quickly straight again.

After parking, remember that you must not open the door on the road side if it will interfere with bicyclists and other traffic.

HOW TO PARK ON A HILL

After you park on a hill, make sure to set your parking brake. Put the transmission in "Park" (or, if your vehicle has a manual transmission, put the transmission into 1st gear). Turn the wheels toward the curb or side of the road, so they will keep your vehicle from heading into traffic.

HOW TO PULL OUT FROM PARALLEL PARKING

To pull away from a parallel parking space, make sure your wheels are straight, back up to the

vehicle behind you and turn your wheels away from the curb.

Six steps to enter safely into traffic:

- 1) Turn your head to look over your right shoulder and check through the rear-window for pedestrians, bicyclists, motorcyclists and other vehicles that can become a hazard;
- 2) Use your interior rear-view mirror to help keep an eye on hazards behind your vehicle;
- 3) Signal your intentions to move from your parking space into traffic;
- 4) Check your side mirrors for oncoming vehicles, pedestrians, bicyclists, in-line skaters, motorcyclists and other highway users;
- 5) Turn your head to look over your left shoulder out through the rear-window and begin to slowly drive forward. Make sure you can avoid the vehicle parked ahead when you enter traffic;
- 6) Turn your head and look over your left shoulder to look through the rear-window, drive into the traffic lane when it is safe to do so.

PARKING REGULATIONS

What people understand as “parking” is legally divided into three categories: parking, standing and stopping. Parking is when a vehicle is stopped, occupied or not, other than temporarily for the purpose of loading or unloading merchandise or passengers. Standing is similar to Parking, except that it only relates to receiving or discharging passengers. Stopping is literally that, bringing the vehicle to a stop (even temporarily).

A NO PARKING sign means you can make a temporary stop to load or discharge merchandise or passengers.

A NO STANDING sign means you can only make a temporary stop to load or discharge passengers. The driver cannot exit the vehicle.

A NO STOPPING sign means you can stop only to

obey a traffic sign, signal or officer or to prevent conflicts with other vehicles.

Besides parking, standing and stopping rules, there are statewide rules not always indicated by signs:

You cannot park, stop or stand:

- Within 15 feet (5 m) of a fire hydrant, unless a licensed driver remains in the vehicle to move it in an emergency.
- On the road side of a parked vehicle (“double parking”).
- On a sidewalk or in a crosswalk.
- In an intersection, unless permitted by signs or parking meters.
- On railroad tracks.
- Next to or opposite road work, construction or other obstructions if your vehicle blocks traffic.
- Within 30 feet (10 m) of a pedestrian safety area, unless another distance is marked.
- On a bridge or in a tunnel.

Parking or standing is not allowed:

- In front of a driveway.
- Within 20 feet (6 m) of a crosswalk at an intersection.
- Within 30 feet (10 m) of a traffic light, STOP sign or YIELD sign.
- Within 20 feet (6 m) of a fire station driveway or within 75 feet (23 m) on the opposite side of the road.
- Along a curb that is cut, lowered or made for access to the sidewalk.

You cannot park your vehicle within 50 feet (15 m) of a railroad crossing.

RESERVED PARKING FOR PEOPLE WITH DISABILITIES

Parking reserved for persons with disabilities is a legal requirement. These special parking spaces for motorists with disabilities ensure safe and equal access to goods and services, access which is taken for granted by many persons. You can park in reserved spaces only if you have a permit or vehicle plates for persons with disabilities and only when the person who received the permit or vehicle plates is in the vehicle.



It is illegal for any vehicle to park, stop or stand in a space reserved for the disabled unless it has vehicle plates for the disabled issued by the DMV, a New York State Parking Permit for the Disabled issued by a city, town, county or village or a similar vehicle plate or permit issued by another state. The vehicle must be in operation to transport the disabled person described in the registration or permit. This law applies to spaces reserved and provided by local ordinance on streets and highways and those held for special use by state law in shopping centers that have five or more stores and 20 or more off-street public parking spaces.

It is a misdemeanor to make a false statement or give false information on an application for vehicle plates, and you would be subject to a mandatory license revocation and could face a fine, incarceration, or both, plus a mandatory surcharge. Additionally, if you make a false statement or provide false information to get a parking permit for a person with a disability, you face possible civil penalties from \$250 to \$1,000 and a mandatory surcharge. These penalties apply to the applicant and to a doctor who provides certification.

To apply for vehicle plates for the disabled or for a NYS Parking Permit for the Disabled use the MV-664.1 Instructions and Application for a Parking Permit or License Plates for People with Severe Disabilities.

Reserved spaces must be marked with signs

like the one shown above, and also can be designated with pavement markings. Do not park in the spaces with diagonal stripes next to reserved parking areas. These spaces are needed to give access to those with wheelchairs and vehicles with special equipment.

The fines for parking violations on a street are set by municipalities. Unless a municipality sets higher penalties, the fine for a shopping center violation is \$50 to \$75 for a first offense and \$75 to \$150 for a second offense within two years in the same municipality. A mandatory surcharge of \$30 will be added to each penalty.

QUESTIONS

Before you go on to Chapter 8, make sure you can answer these questions:

- After you have parallel parked, how near to the curb must your vehicle be?
- May you open a door on the road side of your vehicle if there is no oncoming traffic?
- Before you leave a parking space, what should you do?
- What does a NO STOPPING sign mean?
- Can you stop to load or drop off passengers at a NO STANDING or NO PARKING sign?
- May you park on a crosswalk in the middle of a block?

PART 3

SAFE DRIVING TIPS

CHAPTER 8 / DEFENSIVE DRIVING

Most drivers are good drivers. But even the best drivers make errors now and then. Equipment fails, weather conditions can be bad, and some drivers ignore traffic laws or drive in an erratic manner. To prevent making errors or being involved in a crash because of someone else's error, learn to drive in a defensive manner:

- Be prepared and look ahead.
- Maintain the correct speed.
- Signal before you turn or change lanes.
- Allow space.
- Wear your seat belt.
- Do not drive if you are very weary, are on medication or have been drinking beverages that contain alcohol.
- Keep your vehicle in good condition.
- Do not use hand held mobile devices while driving.

BE PREPARED AND LOOK AHEAD

You should sit in a comfortable but vertical position and keep both hands on the steering wheel. Slouching in the driver's seat or using only one hand on the wheel makes it more difficult or even dangerous to control your vehicle.

Traffic conditions change continuously. Always scan the road ahead. Do not use the road or even the vehicle ahead as your only points of focus. Look ahead so you can prevent, or decrease, possible problems.

Keep your eyes moving, notice what is happening at the sides of the road, and check behind you through your mirrors every few seconds.

Anticipate errors by other drivers, bicyclists and pedestrians and think about what you will do if an error occurs. Do not assume that a driver who approaches a STOP or YIELD sign on a side road is actually going to stop or yield. It is better to assume the other driver will not stop.

DRIVER DISTRACTIONS

A distraction is anything that takes your attention away from driving. Distracted driving can cause crashes, resulting in injury, death, or property damage. Taking your eyes off the road or hands off the steering wheel presents obvious driving risks. Mental activities that take your mind away from driving are just as dangerous.

When driving:

- Do not use cell phones or text.
- Avoid arguments and stressful or emotional conversations with passengers.
- Avoid eating while driving.
- Be sure children are properly and safely restrained.
- Properly secure pets in a pet carrier or portable kennel.

You must pay attention to the driving task. You are responsible for operating your vehicle in a safe manner.

AGGRESSIVE DRIVERS

Aggressive driving includes speeding, which often leads to following too closely, frequent or quick lane changes without a signal, passing on the shoulder or parts of the roadway that are not paved or being a nuisance to motorists, bicyclists or pedestrians, who don't get out of the way. Aggressive drivers sometimes run stop signs and

red lights, pass stopped school buses, fail to keep right, drive while impaired by alcohol or drugs and drive in a reckless manner. Some aggressive drivers try to cause harm to another driver, and that is how aggressive driving becomes road rage.

To prevent road rage, it is sometimes better not to make eye contact with another driver. The other driver can take this as being challenged.

When an aggressive driver confronts you:

- Do not make eye contact.
- Remain calm and relaxed.
- Try to move away safely.
- Do not challenge an aggressive driver with increased speed or try to hold your position in your travel lane.
- Wear a seat belt and encourage your passengers to do the same.
- Ignore gestures and shouts and do not return them.
- Report aggressive drivers to law enforcement authorities and give a vehicle description, location, vehicle plate number and direction of travel.
- If an aggressive driver is following you, do not stop or get out of your vehicle. Drive to the nearest police station.
- If an aggressive driver is involved in a crash, stop a safe distance from the crash scene. When the police arrive, report the driving behavior you saw.

To avoid becoming an aggressive driver:

- Allow enough travel time to reach your destination on schedule.
- Adjust your schedule to prevent driving during times with the most highway traffic.
- If you are late, call ahead so you can relax.

- Do not drive when you are angry, upset or very tired.
- Make your vehicle comfortable. Listen to relaxing music and prevent conditions that make you anxious.
- When you drive, relax and be aware of how you sit. Sit back in your seat, loosen your hold on the steering wheel and do not grind your teeth.
- Be polite, courteous and forgiving to other drivers.
- You can control how you react. If another person drives aggressively, do not do the same.

If you have the right-of-way, do not think of it as a complete right. Be prepared to yield the right-of-way to other highway users. To wait a few seconds for another driver is far better than to risk a crash.

ROAD RAGE

What is “road rage”? Road rage is an angry, hostile state, which can increase into violent criminal actions or attempts of violent action that result from the operation of a motor vehicle. Road rage can include behavior to provoke others or to make them fearful.

Aggressive driving is not road rage. However, aggressive driving can become road rage. Aggressive driving generally involves the violation of a traffic safety law, while road rage involves the breaking of a criminal law.

Who can become road raged? It could happen to anyone when our irritation or anger with others leads us to behavior that is a threat to ourselves and to the safety and lives of others on and near the road or highways. To endanger, threaten or assault another person is illegal. These behaviors can result in severe penalties that include fines, imprisonment and court-ordered probation. They can also result in revocation or suspension of a driver license.

Road rage can include many behaviors, such as:

- Shouts, excessive use of a horn or obscene gestures and threats.
- Driving actions like when you cut off another vehicle, drive too closely, block another vehicle so it cannot use a traffic lane, chase another vehicle or run it off the road, or deliberately slam into a vehicle.
- When you stop a vehicle at the side of the road, get out to threaten, attack, fight or injure another motorist or passenger or a pedestrian, bicyclist or other person.

Research indicates that being in a state of rage can affect your blood pressure and your ability to reason and make decisions. As a driver, you will make more errors. The chance of being involved in a traffic crash will increase.

Aggressive driving and road rage can lead to revoked or suspended driver licenses, problems between family members and friends, loss of employment and legal problems.

Many drivers do not recognize when their own aggressive driving or road rage is affecting their ability to drive safely. State law requires every DMV-approved crash prevention course to address the hazards and dangers of road rage. For information about DMV-approved crash prevention courses, go to the DMV website at <https://dmv.ny.gov/learn-more-about/pirp>. You can also contact one of the program sponsors. Information is available at any state or county motor vehicle office.

SPEED

You must obey the speed limit. If no limit is posted, drive no more than 55 mph (88 km/h). Often, it is common sense to keep your actual speed below the posted limit. For example, the legal limit on a slippery or fogged-in expressway might be 55 mph (88 km/h), or even 65 mph (100 km/h), but the safe speed to drive would be much lower. Even if you were to drive at 50 mph (80 km/h) on that hazardous highway, a police officer could ticket you for a speed "not reasonable" for

the conditions.

To keep a smooth traffic flow, some highways also have minimum speed limits. If you drive slower than the minimum speed you can interfere with the traffic flow and create a dangerous condition. Even if there is no minimum speed limit, those driving too slow can be as dangerous as those who drive too fast.

Know that some cities have speed limits less than 55 mph (88 km/h) that are not always posted. For example, the speed limit is 25 mph (48 km/h) in New York City unless another limit is posted.

ALLOW YOURSELF SPACE

Four of every 10 crashes involve rear-end collisions, normally because a person is following too closely (tailgating). Leave enough room between your vehicle and the one ahead so you can stop safely if the other vehicle stops suddenly. Brake early and gently when you prepare to stop or turn. It gives drivers behind you plenty of warning that you plan to decrease your speed.

For a good "space cushion," use the two-second rule: Select an object near or above the road ahead like a sign, tree or overpass. As the vehicle ahead passes it, count slowly, "one thousand one, one thousand two." If you reach the same object before you finish the count, you are following too closely. In bad weather and when following large trucks, increase the count to at least three or four seconds for additional space.

If a driver follows you too closely (tailgates), move to another lane if possible or reduce speed and pull off the road to let the driver go by. Make sure to signal when you drive off the road and when you return to it. Do not press your brakes suddenly or unnecessarily as this may startle the motorist behind you and could escalate into road rage.

In case you must change lanes quickly or pull over to avoid a hazard, leave some "escape" room to your left and right.

SEAT BELTS, CHILD SAFETY SEATS AND AIR BAGS

Seat belts save lives and can prevent serious injuries in traffic crashes. This is why New York State requires seat belt use by adults in motor vehicles and seat belts, booster seats or child safety seats for children.

New York is a “primary enforcement” state, which means a police officer can pull you over just because you or one of your passengers isn’t wearing their seatbelt. A law enforcement officer can issue a traffic ticket for failure to wear a seat belt. This law also applies to visitors from outside New York State.

Highlights of the New York State occupant restraint law:

- The driver must be properly restrained by a seat belt. The driver can face a fine of up to \$50 if they fail to buckle up.
- A passenger age sixteen (16) years of age or older must be properly restrained by a seat belt, one person per belt. A passenger age sixteen (16) years of age or older can face a fine of up to \$50 if they fail to buckle up.
- The driver must make sure that each passenger under the age of sixteen (16) is properly restrained by a seat belt or appropriate child restraint system. The driver can face a fine of \$25 to \$100 and receive three points on their driver license for each violation.
- A child under the age of four (4) must be restrained in a federally approved child safety seat (examples include infant only, convertible, combination, all-in-one car seat) that is attached to a vehicle by a safety belt or universal anchorage (LATCH) system. A child must be restrained in the rear-facing position until they are two (2) years old or reach the highest weight or height limit allowed by the car seat manufacturer. For babies that outgrow their infant-only car seat, it is recommended that a convertible or all-in-one seat be used in the rear facing position until they outgrow the highest weight or height limit allowed by the manufacturer for the rear facing position.
- A child between the age of four (4) and seven (7) must be restrained in an appropriate federally approved child restraint system (commonly referred to as a booster seat) used with lap and shoulder belt. An appropriate child safety restraint system means the child meets the size and weight recommendations of the manufacturer. A vehicle’s seat belts are not defined as appropriate child restraint systems under the law as they are not designed for use by children.
- All other passengers between the ages of eight (8) and fifteen (15) must be properly restrained by a seat belt, one person per belt. If a child is eight (8) years old or older and is under 4’9” tall or weighs less than 100 pounds, continued use of an appropriate child restraint system is recommended. If the child is four (4) years of age or older, but under the age of eight (8) and is over 4’9” tall and/or weighs more than 100 pounds, the child may be restrained by a seat belt. If the seat belt does not fit correctly, it is recommended that the child continue to use an appropriate child restraint system.
- **Exemptions:** Seat belt use is not required in certain emergency vehicles, 1964 or older vehicles, by passengers in buses (except school buses; but seat belt use in a school bus can be required by a school district), rural letter carriers while discharging the duties of such employment, passengers in taxi and livery vehicles under the age of eight (8), and passengers or operators with a physically disabling condition that prevents them from being restrained, provided that such condition is duly certified by a physician.

When you drive, you must make sure each person in your vehicle is properly restrained by a seat belt, child restraint system, or car seat. During a crash, a person not properly restrained becomes a flying object and a danger to each person in the vehicle.

- For added protection, adjust your vehicle head rest, lock the doors and do not keep loose, heavy objects in the passenger area. Put them in the trunk.
- Air bags are meant to work WITH seat belts, not to replace them. An air bag protects a front-seat occupant in a head-on crash by inflating on impact and providing a cushion so the occupant does not collide with the steering wheel, dashboard or windshield. The combination of a seat belt and an air bag offers maximum protection, partly because they help the driver maintain control of the vehicle and help prevent secondary collisions.
- Air bags engage (expand quickly) from the steering wheel and/or dashboard. Most adults who are correctly fastened are safer in a vehicle with air bags, but the pressure of an air bag as it opens could injure those who sit too close to it. You should sit with at least 10 inches between the center of your chest and the cover of the air bag. Place your hands on opposite sides of the steering wheel, at the 3 and 9 o'clock positions, to keep them away if the air bag engages.

IMPORTANT: NEVER PUT AN INFANT IN A REAR-FACING CHILD SAFETY SEAT IN THE FRONT SEAT OF A VEHICLE THAT HAS A PASSENGER AIR BAG.

HOW TO DRIVE SAFELY IN WORK ZONES

Areas where road work takes place are dangerous to drive in -- and to work in. That is why when you speed in work zones, ticket fines double, even when the workers or work vehicles are not there. Expect to find a work zone wherever you drive -- you may have to decrease speed quickly or even stop. Traffic lanes can shift or be completely closed. Workers and work vehicles can be on or near your driving lane. When you drive in a work zone, make it safer because you know what to do.

Orange signs in the shape of diamonds -- "work zone" warning signs -- are often placed before road construction projects and other work

areas that can change traffic flow. One sign can read: "flagger ahead." A flagger is a worker who motions for you to stop, continue with caution or change lanes. A flagger has the same authority as a sign, which indicates you can receive a ticket for disobeying their directions. Decrease speed! Be Alert! Obey the signs!

Work Zone Tips:

- Some signs can indicate a detour that allows you to avoid the work zone. If you know where a work zone is ahead, you should try to use a different route.
- As you enter a work zone, flashing signs or signs with arrows or signs that warn "lane closed ahead" mean you should merge your vehicle into the correct lane when it is safe. Do not speed to the end of the closed lane and try to get into the other lane. If you move to the correct lane at first notice, you will drive in a calmer, more efficient, and safe manner.
- Decrease your speed when a sign indicates: "Road Work 1,500 feet," that means your car, with a speed of 60 miles per hour, will get there in 17 seconds.
- The rear-end collision is the most common crash in a work zone. To avoid being involved in one, it helps to keep a braking distance of two seconds or more between you and the vehicle in front of you. (See "Allowing Yourself Space," earlier in this chapter) Keep a safe distance between your vehicle and traffic barriers, trucks, construction equipment and workers.
- Some work zones are not stationary, like when workers paint lines, patch roads or mow. In these cases the size and/or location of the work zones may change. As work progresses, the work zone size may increase, decrease, or move to different sections of the roadway. Workers can be close even if you do not see them immediately after the warning signs. Obey the signs until you pass the one that states the work zone has ended.

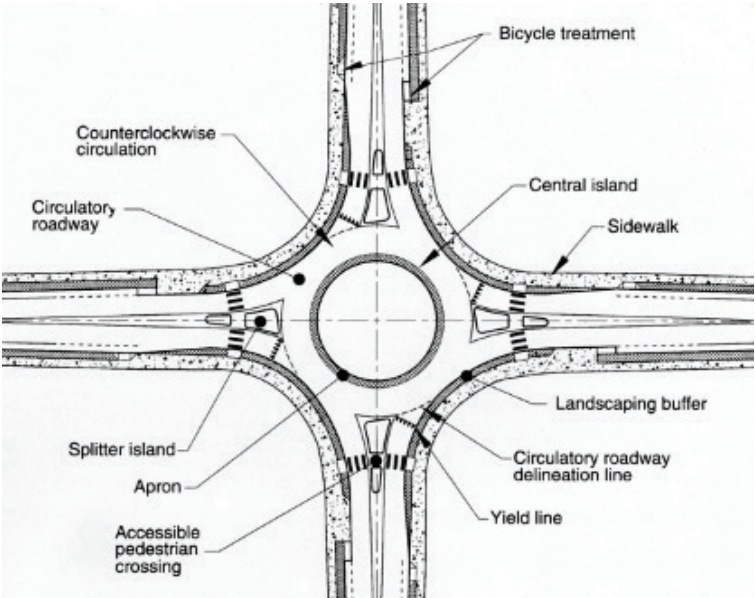
ROUNDAOBOUTS

What is a roundabout?

The modern roundabout is a type of circular intersection with yield control of entering traffic where traffic moves counterclockwise around a central island.

This image represents a common roundabout design: Three basic principles distinguish the modern roundabout:

1. Roundabouts follow the “yield-at-entry” rule in which approaching vehicles must wait for a gap in the circulating flow before entering the circle.



2. Roundabouts involve low speeds for entering and circulating traffic, as governed by small diameters and deflected (curved) entrances.

3. Adequate deflection of the vehicle entering a roundabout is the most important factor influencing their safe operation. Roundabouts are designed so that the speed of all vehicles is restricted to 30 mph (50 km/h) or less within the roundabout.

How to Navigate a Roundabout

Motor Vehicles

- When approaching the roundabout, follow the lane designation signs and choose the proper lane for multi-lane approach roadways, slow down and yield to pedestrians in the crosswalk.
- Look to the left. Traffic in the roundabout has the right-of-way.
- Approach the yield line and enter the roundabout when there is an adequate gap in the circulating traffic flow.

- If another car is waiting at the yield line ahead of you, do not stop in the crosswalk. Keep the crosswalk clear for pedestrians.
- Bicyclists are permitted to ride within the roundabout and will be riding in the lane just as other vehicles do. Please do not pass a bicycle in the roundabout.

Exiting the Roundabout

- Once you have entered the roundabout, proceed counterclockwise to your exit. You now have the right-of-way.
- As you approach your exit, turn on your right turn signal.
- Exit the roundabout, yielding to pedestrians in the crosswalk.

Pedestrians

- Stay on the designated walkways at all times.
- Cross only at the designated crosswalks.
- Never cross to the central island.
- Watch for cars; you have the right-of-way, but your best protection is your own attention.
- Cross the crosswalk one lane at a time, using the splitter island as a refuge area before crossing the next lane

Bicyclists

- If you are comfortable riding in traffic, take the lane and circulate like you are a vehicle, making sure you yield to traffic in the circle when entering.
- Ride at the speed of the circular roadway to discourage cars from passing you.
- When you exit the roundabout, use your right hand signal.
- If you are unsure about using the roundabout, dismount and walk your bike as a pedestrian at the designated crosswalks.

For more information about Roundabouts, please visit the New York State Department of Transportation website at <https://www.dot.ny.gov> and search for Roundabouts.

DROWSY AND FATIGUED DRIVING

Driving and sleep do not mix. When you are behind the wheel of a car or truck, fatigue is dangerous. If you are tired when driving you are slower to react, and not as aware as you should be and your judgment will be impaired. As with drugs and alcohol, drowsiness can contribute to a traffic crash.

Symptoms of Fatigue

Researchers have found the following symptoms to be associated with drowsy driving:

- Your eyes close or go out of focus by themselves.
- You find it difficult to keep your head up.
- You continue to yawn.
- Your thoughts wander and are disconnected.
- You do not remember driving the last few miles.
- You drift between lanes, tailgate or miss traffic signs.
- You must jerk the car back into the lane.
- You have drifted off the road and hit the rumble strips, which produce a loud noise and vibrations.

Who is Most at Risk? All Drivers who are:

- Deprived of sleep or fatigued.
- Driving long distances without rest breaks.
- Driving through the night or at times when you are normally asleep.
- Taking medication that increases sleepiness or drinking alcohol.
- Driving alone.
- Driving on long, rural, or boring roads.
- Frequent travelers, e.g., business travelers and long-distance commuters.
- Young People – Drowsy driving crashes are

most common for young people, who tend to stay up late, sleep too little and drive at night.

- **Shift Workers** – Drivers who have non-traditional work schedules have a greater risk of being involved in a fatigue-related traffic crash.
- **People With Undiagnosed Sleep Disorders** – The presence of a sleep disorder increases the risk of crashes. If you find you are regularly tired in the daytime or experience any of these symptoms on a regular basis, you may have a sleep disorder and should seek medical help.

Effective Countermeasures

Prevention – Before you embark on a trip, you should:

- Get enough sleep.
- Plan to drive long trips with a companion.
- Schedule regular stops for every 100 miles or two hours.
- Avoid alcohol and medications (over-the-counter and prescribed) that may impair performance. Check with your doctor or pharmacist about any medication you are taking. Alcohol interacts with fatigue, increasing its effects.
- You are not at your best if you are ill or very tired. Do not drive for at least 15 minutes after waking from sleep.

Actions for the Drowsy Driver

If you suspect that you are drowsy when driving, you must:

- Recognize that you are close to sleep and cannot calculate when sleep may occur.
- Not depend on the radio, open window or other “tricks” to keep you awake.
- Find a safe place to stop for a break in response to symptoms of fatigue.

- Pull off into a safe area away from traffic and take a brief nap (15 to 45 minutes).
- Drink coffee or another source of caffeine to promote short-term alertness if needed. (It takes about 30 minutes for caffeine to enter the bloodstream.)

NOTE: See Chapter 9 for more information about the dangers of driving under the influence of alcohol and other drugs.

USING A CELLULAR OR MOBILE TELEPHONE

A driver can become distracted from safe driving by use of a mobile telephone (like a cellular telephone). In New York State, it is a traffic infraction to speak into or listen to a hand-held mobile telephone while driving. For a first offense, you could be required to pay a fine up to \$200 and receive five license points. The phone may be hand-held to activate, begin, or end a call. Exemptions are provided for calls for emergency situations, for police and other law enforcement officers and for fire department personnel and operators of authorized emergency vehicles in the performance of official duties. In New York State, a hands-free mobile telephone allows the user to communicate without the use of either hand. A driver can use a hands-free telephone at any time.

Penalties for texting, electronic device use

In New York State, it is illegal to use portable electronic devices, such as cell phones and smart phones, to send or receive text messages or e-mails while driving. The penalty for a first offense is a fine of up to \$200. A second offense (both committed within 18 months) is a fine up to \$250. A third or subsequent offense (all committed within 18 months) is a fine up to \$450. Also, drivers with probationary and junior licenses who use a hand-held phone or text while driving will receive a 120-day suspension for a first conviction and a revocation of at least one year for subsequent convictions within six months of the time a license is restored after suspension.

VEHICLE CONDITION

No person shall operate or park a vehicle on public highways unless it has been inspected at least once a year, but that does not mean it is the only time you should have safety equipment checked. Follow your owner's manual for routine maintenance. Have problems corrected by a qualified mechanic as soon as possible. Do not wait until mechanical problems cause breakdowns or crashes.

Pay special attention to the maintenance and repair of the brakes, steering mechanism, lights, tires and horn. Depend on your owner manual and an experienced mechanic as keys to a safe vehicle. It is the operator's responsibility to ensure that the vehicle being driven is safe.

Here are some common problems, and some equipment checks you can do:

BRAKES - Brakes that pull to one side may be wet or may need to be adjusted or repaired. If wet, you can dry them riding the pedal lightly. If this does not help, have your brakes checked by a mechanic. If you notice any change in the brake performance, have them checked immediately.

STEERING - There should not be much free movement in the steering wheel. If your vehicle has power steering, check the fluid level periodically. A noise like a whine when you make a sharp turn can indicate a problem.

LIGHTS - Keep your lights clean and free of dirt, snow and ice. Broken lenses can cause dangerous glare for other drivers, so replace them as soon as you can. Make sure headlights are adjusted correctly to give you the best view of the road.

TIRES - The law requires that your tires have at least $\frac{2}{32}$ nds of an inch (.16 cm) of tread. Most tires for passenger cars and light trucks have indicators called "wear bars" that show across the tire grooves when the minimum tread depth is reached. You can check your tread depth with a penny. Hold a penny with Abraham Lincoln's body between your thumb and forefinger. Place Lincoln's head first into the deepest looking groove. Can you see all of his head? If yes, your tires are too worn – don't drive on them, and make sure to get them replaced. It is also illegal to drive with

tires that have cuts down to the cords, bumps or bulges. Refer to your owner manual or a tire store about correct tire pressure, and check it often with a reliable gauge.

GLASS - Keep your indows clean and clear. Replace worn wiper blades. Keep your defroster and rear window defogger in good condition and make sure there is enough windshield fluid in the reservoir.

HORN - Your horn is important safety equipment that could become your only means of warning other drivers or pedestrians of possible problems. If the horn does not work, get it repaired as soon as possible. It should be used properly, not to express anger at other drivers or pedestrians.

QUESTIONS

Before you move on to Chapter 9, make sure you can answer these questions:

- Should you always look straight ahead when you drive?
- If there is no posted speed limit, what is the fastest you can legally drive in New York City?
- Is it always safe to drive at the assigned speed limit?
- What is the purpose of minimum speed limits?
- Who must wear seat belts? Who should wear them?
- How can you prevent fatigue on a long trip?
- What is road rage? How can you prevent becoming involved in road rage?
- How should you drive safely through a work zone? A roundabout?

CHAPTER 9 / ALCOHOL & OTHER DRUGS

You have probably heard the facts before - driving while impaired or intoxicated is a serious traffic safety problem in the United States. In New York State, more than 40 percent of all motor vehicle fatalities involve impaired driving. But the facts and statistics do not tell the whole story. Behind the numbers are thousands of lives cut short, permanent or disabling injuries, and families devastated because someone drove while under the influence of alcohol or other drugs.

When you drink alcohol or take other drugs, safe driving is not possible. Not every impaired or intoxicated driver causes a traffic crash, but each one is dangerous, putting their lives and those they share the road with at risk.

Young people, who have less experience with alcohol or drugs and less experience with driving, are at high risk. Drivers under age 21 are approximately 4 percent of the driving population, but 7 percent of the impaired drivers involved in fatal crashes. This is one reason the driver license revocation penalties are more severe for young drivers who drive under the influence of alcohol or other drugs.

Because driving “under the influence” is so dangerous, the penalties for alcohol or drug-related violations are tough and enforcement is important. The chance of apprehension and conviction are high and New York State law strictly limits your ability to plea bargain when charged with an offense related to alcohol or drugs.

WHAT ALCOHOL DOES

Alcohol delays your reaction time, reduces your ability to see clearly, changes your judgment of speed and distances, often makes you less inhibited and makes you more prone to take chances. The important skills you need to drive safely are made weaker.

Because your vision is normally restricted at night, it is especially dangerous to drink and drive after dark. Alcohol also reduces your ability to recover from the glare of headlights. When another

vehicle moves toward you, you can be blinded by its headlights for a long period of time.

You do not have to look or feel intoxicated for these things to occur. The effects of alcohol consumption can begin long before you become intoxicated or even legally impaired and begin with the first drink.

As alcohol physically limits your ability to drive, it also makes you less aware of what is happening to your safe driving abilities. It becomes difficult for you to judge your condition. You can gain confidence about driving, when you should not be driving at all.

During each mile you drive, you make hundreds of decisions. Your decisions turn into actions that keep your vehicle controlled and ensure you avoid crashes. Alcohol makes it difficult to make correct decisions and to take the safest actions.

For example: You have just stopped at a STOP sign. You see another vehicle approaching the intersection. You must quickly make a decision whether it is safe to go through the intersection. Under the influence of alcohol, you are more likely to make a wrong decision and “take a chance.” Your slower reaction time, and the bad decision, could cause a crash.

OTHER DRUGS

It can be a criminal offense to drive while impaired by the effect of drugs, alcohol or the combination of alcohol and drugs, including marijuana/cannabis, and illegal drugs such as, cocaine, LSD, heroin, opium and by some prescription drugs. Drugs can detrimentally affect your reflexes, judgment, vision and alertness and they may have other dangerous effects as well.

A combination of alcohol and other drugs severely reduces your ability to drive and can cause serious health problems, which can include death.

A combination of alcohol and other drugs severely reduces your ability to drive and can cause serious health problems, which can include death.

ALCOHOL, OTHER DRUGS AND THE LAW

In New York State, you can be arrested for any of these offenses: aggravated driving while intoxicated (Agg-DWI), driving while intoxicated (DWI), driving with a blood alcohol content of .08 percent or more (.08 BAC), driving while ability impaired by a drug (DWAI-drug), driving while ability impaired by alcohol (DWAI), or driving under the combined influence of alcohol and drugs.

Blood alcohol content (BAC) is the percentage of alcohol in your blood and is normally determined by a chemical test of breath, blood, urine or saliva. A BAC of more than .05 percent is legal evidence that you are impaired, a BAC of .08 percent or higher is evidence of intoxication, and a BAC of .18 percent or more is evidence of aggravated driving while intoxicated.

Many people think chemical test evidence is required to prove you were intoxicated or impaired. However, the testimony of a police officer about the way you drive, However, the testimony of a police officer about the way you drive, and your appearance and behavior while interacting with and, behavior while interacting with the officer can provide enough evidence to convict you, even without a chemical test.

If you are found guilty of any alcohol or drug-related violation, the court must revoke or suspend your driver license when you are sentenced. Even if the court allows you to continue driving for 20 days, your driver license will be taken immediately.

The BAC standards and penalties for commercial drivers are even tougher than those indicated in this chapter. For complete information, see Section 1 of the Commercial Driver's Manual (CDL-10).

YOUR BAC

Your (BAC) depends on:

- How much alcohol you drink.
- How much time passes between drinks.
- Your weight.

Your BAC does not depend on the type of beverage you drink, how fit you are, or how you can "hold your liquor."

Different types of drinks do not affect you differently. It is the amount of alcohol you consume, not whether it is in beer, wine or liquor that raises your BAC and reduces your driving ability. These drinks contain about the same amount of alcohol – 1-1/2 ounces of liquor, 5 ounces of wine, 12 ounces of beer, and 12 ounces of wine cooler. None is "safer to drink" than the others.

For a 150-pound male, each one of these drinks contains enough alcohol to increase his BAC by about .02 percent. On average, it takes the body approximately one hour to remove that much alcohol. Studies indicate that a woman will take longer to process and remove alcohol from the blood. This can cause a higher BAC over a longer period of time.

.02 BAC =



5 oz. glass of wine
12% alcohol

OR



1 1/2 oz. liquor
80 proof

OR



12 oz. (360 ml) can of
beer 5% alcohol

OR



12 oz. wine cooler
5% alcohol

Compared to the 150-pound male described above, your body weight can make some difference in the BAC and the effects of alcohol. No one has immunity to the effects of alcohol. It is a simple fact: the more you drink in a given period of time, the higher your BAC will be and the less safely you will drive.

It takes only a few drinks to increase your BAC to levels at which it is illegal to drive. And remember, the effects of alcohol on your ability to drive begin at even lower BAC levels after just one drink.

Eating before or while you drink helps slow the absorption of alcohol somewhat, but it cannot prevent intoxication or impairment if you have too much to drink.

The only method to effectively reduce your BAC is not to drink over a period of time. Coffee, exercise and cold showers cannot reduce your BAC and the effects of alcohol. They can help you remain awake, but it cannot change your BAC or make you sober.

CHEMICAL TESTS

Chemical tests use blood, breath, urine or saliva to measure the BAC of a person. If you are arrested for an alcohol or drug related violation, the police officer will likely request that you submit to a chemical test (breath test analyzer). Under New York's "Implied Consent" law, when you drive a car in this state you are considered to have given your consent to take this type of test.

Chemical test refusal is a separate issue from whether you were guilty of an alcohol or drug-related violation. If you refuse to take the test after being arrested, your driver license will be suspended when you are arraigned in court on the alcohol or other drug-related charge. In addition, the fact that you refused a chemical test can be brought up in court when you are tried on the alcohol or drug-related charge. If a DMV hearing later confirms you refused the test, your driver license will be revoked even if you are found not guilty of the alcohol or other drug-related violation. For information about driver license

revocations and civil penalties for chemical test refusals, see Chapter 2.

THE CONSEQUENCES

The table "Penalties for Alcohol/Drug Related Violations" describes fines, surcharges, license penalties and possible imprisonment if you are convicted of an alcohol or drug-related violation. Impaired or intoxicated driving can also have other serious results.

Repeat Offenders

Drivers with repeat dangerous driving convictions in New York State face one of the toughest licensing policies in the nation. These regulations call for:

- **Lifetime Record Review by DMV:** DMV will review the lifetime record of all drivers who apply to have a license reinstated after a revocation.
- **Permanent License Denial for Persistently Drunk & Dangerous Drivers:** After conducting a lifetime record review, DMV will deny any application for reinstatement of a license after revocation if the applicant has:
 - Four alcohol or drug related driving convictions or incidents in their lifetime, or
 - Three alcohol or drug related driving convictions or incidents in the 25 year look back period plus at least one other serious driving offense during that period. A serious driving offense includes: a fatal crash, a driving-related penal law conviction, an accumulation of 20 or more points assessed for driving violations within the 25 year look back period or having two or more driving convictions during the 25 year look back period each worth five points or more.
- **Delayed Re-Licensing, Driving Restrictions, & Interlocks for Other Drivers with Repeated Alcohol- or Drug-Related Driving Convictions:** For those drivers seeking reinstatement of a license after revocation who have three alcohol- or drug-related driving convictions or incidents but no

serious driving offense in the 25 year look back period,

- Deny their applications for five years beyond their statutory revocation period if the applicant's license was revoked for an alcohol- or drug-related offense; or two additional years if the applicant's license was revoked for a reason other than an alcohol or drug related offense;
- Restore the applicant's license after that additional period as a "restricted" license limiting the applicant's driving to, for example, travel to and from work or medical visits; and
- Require an interlock device on the vehicle driven by the applicant for five years from the date of issuance of the licensing document. The interlock requirement applies to those motorists who were approved after the five-year waiting period.
- **End the Reduction of Mandatory Suspension or Revocation Periods:** Previously, drunk drivers whose licenses have been revoked or suspended twice within a 25-year period could get their full driving privileges back in as little as seven weeks by completing DMV's Impaired Driver Program. DMV's new regulations will ensure that those drivers cannot obtain their driving privileges until their full term of suspension or revocation has ended.

Zero Tolerance for Drivers Under Age 21

The legal purchase and possession age for beverages containing alcohol in New York State is 21. Under the state's "zero tolerance" law, it is a violation for a person under 21 to drive with any BAC that can be measured (.02 to .07). After a finding of violation is determined at a DMV hearing, the driver license will be suspended for six months. The driver then must pay a \$100 suspension termination fee and a \$125 civil penalty to be re-licensed. For a second Zero Tolerance violation, the driver license will be revoked for at least one year or until the driver reaches 21, whichever is longer.

Illegal Purchase of Beverages Containing Alcohol

When you use a driver license or Non-Driver ID card as proof of age to illegally purchase beverages that contain alcohol, state law requires the suspension of your driver license or privilege to apply for a license.

Open Container Law

It is a traffic infraction for a driver or passenger in a motor vehicle on a public highway, street or road to drink a beverage containing alcohol or to possess an open container containing an alcoholic beverage. It is also a traffic infraction for a driver or passenger in a motor vehicle on a public highway, street or road to consume marijuana/cannabis. The penalty for a first conviction is a fine up to \$150, a mandatory surcharge, a crime victim assistance fee, and possible imprisonment of 15 days. Additional offenses within 18 months bring higher penalties. The law exempts passengers in vehicles like stretch limousines and other vehicles that display a commerce certificate or permit issued by the U.S. Department of Transportation or the NYS Department of Transportation.

PENALTIES FOR ALCOHOL/DRUG RELATED VIOLATIONS

AGGRAVATED DRIVING WHILE INTOXICATED AGG-DWI (0.18 and higher Blood Alcohol Content [BAC])

CONVICTION	FINE ONLY*	JAIL SENTENCE	REQUIRED LICENSE ACTION**
1 st Offense (Misdemeanor)	Minimum \$1000 Maximum \$2500	Up to 1 year	Minimum 1-Year Revocation
2 nd Offense (Class E Felony) Within 10 Years	Minimum \$1000 Maximum \$5000	Up to 4 years	Minimum 18-Month Revocation

DRIVING WHILE INTOXICATED OR DRIVING WHILE ABILITY IMPAIRED BY A DRUG DWI (0.08 and higher Blood Alcohol Content [BAC]) or DWAI-Drug

CONVICTION	FINE ONLY*	JAIL SENTENCE	REQUIRED LICENSE ACTION**
1 st Offense (Misdemeanor)	Minimum \$500 Maximum \$1000	Up to 1 year	Minimum 6-Month Revocation DWI; Minimum 6-Month Suspension (DWAI-D)
2 nd Offense (Class E Felony) Within 10 Years	Minimum \$1000 Maximum \$5000	Up to 4 years (DWI & DWAI-D); minimum 5 days jail or 30 days of community service (for DWI within prior 5 years)	Minimum 1-Year Revocation

DRIVING WHILE IMPAIRED BY COMBINED ALCOHOL & DRUGS DWAI-Combination

CONVICTION	FINE ONLY*	JAIL SENTENCE	REQUIRED LICENSE ACTION**
1 st Offense (Misdemeanor)	Minimum \$500 Maximum \$1000	Up to 1 year	Minimum 6-Month Revocation
2 nd Offense (Class E Felony) Within 10 Years	Minimum \$1000 Maximum \$5000	Up to 4 years	Minimum 1-Year Revocation

DRIVING WHILE ABILITY IMPAIRED DWAI (more than 0.05 up to 0.07 Blood Alcohol Content [BAC])

CONVICTION	FINE ONLY*	JAIL SENTENCE	REQUIRED LICENSE ACTION**
1 st Offense (Traffic Infraction)	Minimum \$300 Maximum \$500	Up to 15 Days	90 Day Suspension
2 nd Offense (Traffic Infraction) Within 5 Years	Minimum \$500 Maximum \$750	Up to 30 Days	Minimum 6-Month Revocation
3 rd Offense (Misdemeanor) Within 10 Years	Minimum \$750 Maximum \$1500	Up to 180 Days	Minimum 6-Month Revocation

NOTE: Higher fines, longer jail sentences, and increased license penalties (including lifetime revocation) may result from a third or subsequent conviction within 10 years. * Conviction fine only, does not include mandatory surcharge or crime victims' assistance fee.

**The Department of Motor Vehicle determines when your license can be returned. Its return or reinstatement, based on state law or regulation, is not automatic. You must reapply for your license and may have to pass a test.

NOTE: License actions for those under age 21 are different.

The Ignition Interlock Program and Leandra's Law

Courts must order all persons convicted of driving while intoxicated or aggravated driving while intoxicated, or of a penal law offense for which an alcohol related violation of any provision of section 1192 of the Vehicle & Traffic Law is an essential element to install and maintain an ignition interlock on any vehicle owned or operated by such driver for at least 12 months. (This device, purchased and installed at the expense of the motorist, is connected to a motor vehicle ignition system and measures the alcohol content of the breath of the driver. The vehicle cannot be started until the driver provides an acceptable sample breath.) The 12-month requirement may be waived by the court if the defendant demonstrates that the interlock device was installed for at least six months, unless the court orders the interlock device to be installed for a longer period of time. The judge also must order an alcohol assessment for a repeat offender. If the assessment indicates alcohol treatment is necessary, the judge may be required to order the completion of treatment as a condition of probation.

Drivers who commit these alcohol-related offenses with a child under 16 years old in the vehicle may be charged with a class E felony, punishable by up to four years in prison. (This is known as Leandra's Law.)

The law also makes it a felony to drive drunk with a conditional license, which is a license that may be issued by the DMV when someone is convicted of an alcohol-related offense. Such a license may be used only for driving to and from essential destinations such as school, work and medical appointments. The conditional driver license will be revoked if the motorist does not comply with the court terms or for a conviction for any traffic offense except parking, stopping or standing.

A FEW IMPORTANT REMINDERS

- If you kill or cause an injury to another person because of an alcohol or other drug-related violation, you can be convicted of criminally negligent homicide, aggravated vehicular homicide, vehicular manslaughter

or vehicular assault. These carry a fine of thousands of dollars and can carry a maximum jail term of 25 years.

- If you drive while your license is suspended or revoked, you face a mandatory fine of \$200 to \$1000 and a mandatory jail term or probation. If impaired or intoxicated when you are arrested, the maximum mandatory fine is \$5,000 and the vehicle can be seized.
- Liability insurance may not cover the cost of injuries and damage from a traffic crash. You could be sued for thousands of dollars and you would find it difficult and expensive to buy liability insurance for several years.
- Besides fines and surcharges, you could also face costly legal fees.
- You could have a criminal record, which makes it harder to get a job or move forward in your job.

HOW TO AVOID TROUBLE

You are not likely to worry about the results of your actions while you are impaired or intoxicated. The time to consider them, and how to prevent them, is before you become impaired or intoxicated.

- If you go to events with the same group of friends, rotate drivers. Each friend takes a turn being the "designated driver" who does not drink any alcohol.
- Arrange to remain overnight or ride home with a friend who does not drink.
- Before you drink, give your car keys to a friend who does not drink and who will not let you drive after you drink.
- Call a cab, or contact a Ride Share operator or use public transportation.
- Drink slowly. Alternate between drinks with alcohol and drinks without any alcohol.
- Do not consume (e.g. smoke, vape, eat, etc.) marijuana/cannabis-based products before driving.

- Do not make alcohol the focus of your event
- If you have had too much alcohol, stop drinking several hours before you intend to leave so your body can begin to lower your BAC

QUESTIONS

Before you move on to Chapter 10, make sure you can answer these questions:

- How does impaired driving rank as a high-way safety problem?
- What are the effects of alcohol on the skills you need to drive?
- Which of these drugs could affect your ability to drive: marijuana, a cold remedy, a tranquilizer?
- If you take a non-prescription drug, what must you do before you drive?
- What is a likely effect when you take another drug while you drink beverages containing alcohol?
- On what three conditions does your blood alcohol content (BAC) depend?
- Which of these contains more alcohol than the other three: 1-1/2 ounces (30 ml) of liquor, five ounces (120 ml) wine, 12 ounces (360 ml) of beer, 12 ounces (360 ml) of wine cooler?
- On average, how long does it take your body to remove the alcohol contained in 12 ounces of beer?
- What is the only effective method to reduce your BAC?
- What happens to your driver license if you refuse a chemical test?
- Other than fines, action against your driver license and a possible jail term, what are some of the results when you drive under the influence of alcohol or other drugs?

CHAPTER 10 /SPECIAL DRIVING CONDITIONS

Even under the best conditions, driving requires your full attention and your best judgment. When special conditions or hazards occur, attention and judgment become even more important. To be a good and safe driver, you must learn how to drive on expressways, at night, in bad weather and when an emergency occurs.

RAILROAD CROSSINGS

GRADE CROSSINGS

A grade crossing is the point at which train tracks intersect with a roadway and is considered an intersection. As you approach a crossing, always expect a train. Trains can run on any track, at any time, from either direction. Never race a train to a crossing, never drive around lowered gates, and do not stop on tracks. (You will learn later in the section what to do if your vehicle stalls or gets stuck on a track.) When crossing tracks, always stay in your lane and in the same gear.

Some grade crossings have flashing red lights or lowering gates when a train approaches ("active" grade crossings). When approaching marked, or active, grade crossings, do not proceed until the gates are completely raised and the lights are off. It is illegal and dangerous to go around lowered gates or to cross while the lights are still flashing.

Some grade crossings do not have gates or flashing lights. When approaching unmarked, or passive, grade crossings, slow down and be prepared to stop. Before you cross, be sure that a train is not coming. If you see a train coming, wait until it passes, and then cross the tracks when it is safe to do so. If there are multiple tracks, wait until you can clearly see down all sets of tracks in both directions for another approaching train before crossing.

Remember that the train you see is closer and faster-moving than you think, and be aware that trains cannot stop quickly.

Railroad Crossing Warning Sign

COLOR: Yellow with black letters "RR" and "X" symbol.

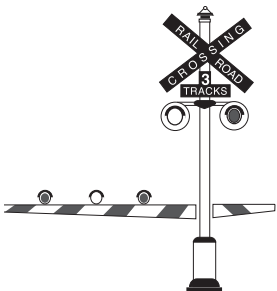
MEANING: There is a railroad crossing ahead. Use caution, and be prepared to stop. If you are following a bus or truck approaching a railroad crossing, be careful. Most buses and some trucks must stop at railroad crossings.



(See "Railroad Crossing Signals".)

Railroad Crossing Signals

Flashing red lights, lowered crossing gates and/or a bell at a railroad crossing indicate that you must stop, at least 15 feet (5 m) from the tracks. Do not go across the tracks until the lights and bell have stopped and the crossing gates are completely up. Do not drive around or under a gate that is moving up or down.



Yield when you see a crossbuck sign, which is a sign shaped like an "X" with "RAILROAD CROSSING" printed on it (like the sign above but without flashing lights). If there are multiple train tracks, the sign will show the number of tracks.



Look and listen for trains before crossing any railroad tracks. If an approaching train is near enough or going fast enough to be a danger, you cannot go across the tracks, even if they have no signals or the signals are not working.

Do not under any circumstances, attempt to cross any railroad tracks unless you are certain your entire vehicle will clear all of the tracks at the crossing. You cannot go across any railroad tracks unless there is room for your vehicle on the other side. If other traffic prevents you from going fully across, wait and go across only when there is room.

School buses with or without passengers, other buses with passengers on board and vehicles with explosives or flammable cargo must stop at all railroad crossings. Remember those rules if you are following one of these vehicles.

Pavement Markings

Sometimes, grade crossings do not have flashing red light signals or gates. Pavement markings will often show you that a grade crossing is ahead. Stay behind the stop line while waiting for a train to pass.



Stalling on Railroad Tracks

What should you do if you stall on the tracks, for any reason?

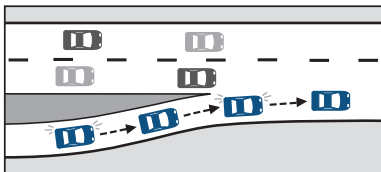
**REPORT EMERGENCY
OR PROBLEM
TO 1-800-555-5555
CROSSING 836 597 H**

1. GET OUT! (That includes EVERYONE in the car, children, babies, an elderly passenger, etc.)
2. Get away from the tracks, even if you do not see a train.
3. Locate the Emergency Notification System sign and call the number provided, telling them about the stalled vehicle.

Run toward the general direction the train is coming from. If a train is approaching, run toward the train but away from the tracks at a 45-degree angle. If you run "down the track," in the same direction as the train, you can be hit with debris when the train hits your vehicle.

EXPRESSWAY DRIVING

“Expressway” means any divided highway where traffic moves in one direction on two or more lanes. You normally enter or exit the expressway on ramps (controlled-access). The speed limit is normally 55 mph (88 km/h), but can be posted at 65 mph (100 km/h) in some rural areas. Examples of expressways are the New York State Thruway, major interstate routes and parkways.



Before you travel on an expressway, identify your entrance and exit points on a road map. Know where to get on and off the expressway and be prepared to get into the correct lanes for your entrance and exit. If you enter an expressway going a different direction than you intended, or at the wrong exit, stay on the expressway until the next exit. After you exit the expressway, you can figure out where you need to go and (if necessary) get back on the expressway. **IT IS DANGEROUS** to back up on an entrance or exit ramp, or to try to cross a median.

Unless there is a STOP or YIELD sign or traffic light on the entrance ramp, use the ramp to accelerate to expressway speed and blend with traffic. Signal, then look over your shoulder for traffic already on the expressway. If necessary, slow down to safely merge into traffic.

If the entrance lane is too short to allow acceleration to expressway speed, the safest method to enter is to stop and wait for a large space in traffic. Then enter the expressway and accelerate quickly. To avoid conflicts with other entrance lane traffic, stop when necessary and merge into expressway traffic as soon as possible.

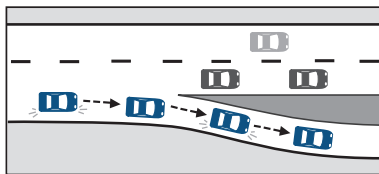
As you drive on the expressway, make sure to signal all lane changes and check over your shoulder to make sure you will not cut off any vehicles behind you. Make sure your directional signal goes off after you change lanes.

Remain alert for traffic that enters ahead. If possible, move from the right lane when you approach the entrances to allow more room for traffic entering the expressway from the ramp.

To prevent a last-minute lane change, check the destination and exit signs and get into the correct lane for your exit ahead of time. Make sure to signal your exit at least 100 feet (30 m) before you reach the exit ramp. When you are on the exit ramp, decrease your speed. There is often a lower speed limit for the ramp.

After you leave an expressway, look for speed limit signs and check your speedometer to be sure you are within the posted limit. You are not likely to be on a 55 mph (88 km/h) road.

Expressway driving normally combines higher speeds with heavy traffic. The higher speed and amount of traffic require you to think faster and handle your vehicle in a more efficient manner than in most other conditions. On long trips, plan frequent rest stops. On a bright day, sunglasses can reduce glare and eye fatigue.



NIGHT DRIVING

About 90% of your decisions are based on what you see. At night, you must use extra caution to make up for reduced visibility. You should also know that the ability to see well at night decreases with age.

Night driving is more dangerous because the distance you can see ahead or to the side is reduced. You should drive slower than you would in daylight, especially in areas that are not known or on narrow roads with many curves. Your headlights cover about 350 feet ahead. It is important that you drive at a speed that allows you to stop safely within that distance. This is called “driving within the range” of your headlights.

The law requires you to use your headlights from one-half hour after the sun sets to one-half hour before the sun rises, when visibility is less than 1,000 feet (300 m) and when you use your windshield wipers to clear rain, snow or sleet. Turn your headlights on at dawn, dusk and in fog. Even when headlights do not help you see in low-light periods, they make it easier for other drivers and pedestrians to see your vehicle. Do not use parking lights or daytime running lights as a replacement. Headlights do a better job. If an oncoming driver flashes headlights at you during a period of low visibility, it means your vehicle was difficult to see and you should turn on your headlights.

Be considerate when you use your high beams. Your headlights must be on low beam when you are within 500 feet (150 m) of an oncoming vehicle or within 200 feet (60 m) of a vehicle ahead of you, even if the vehicle ahead is in a different lane. You should also dim your lights for pedestrians who approach you. Any fog or driving lights your vehicle has must be arranged, adjusted or operated to avoid dangerous glare to other drivers.

If an approaching driver does not dim the headlights, flash your headlights to high beam for a second, then return to low beam. To help avoid the glare of approaching high beams, move your eyes to the right. Use the road edge as a guide until the approaching vehicle passes by.

To reduce glare from the lights of following vehicles, switch your inside rear view mirror to the "night" position.

Light from inside your vehicle or from street lights makes it harder for you to see the road ahead. Keep the interior roof light off and dim the dashboard lights. Adjust your visors to reduce glare from lights from above.

A dirty windshield increases glare from approaching headlights. Make sure your lights and windshield glass are clean for night driving.

DRIVING IN RAIN, FOG OR SNOW

A bit of rain, snow or ice makes roads slippery. Wet leaves can be slippery and hazardous.

Reduced speed and increased following distance improve your safety under these conditions (see Chapter 8). Take additional care on curves, turns and expressway ramps.

In heavy rain, your tires can begin to ride on the water that is on top of the road pavement. This is called "hydroplaning" and can cause complete loss of traction and control of steering. Hydroplaning normally occurs at higher speeds, but it also can occur if your tires are tread worn or not inflated properly. When there is heavy rain, it always makes sense to drive more slowly. If your vehicle begins to lose traction, decrease your speed even more. Good tires with deep tread help to prevent hydroplaning.

Rain, fog or snow make it harder to see through your windshield, and difficult for other drivers to see you. New York State law requires you to turn on your headlights when the weather conditions require the use of windshield wipers to clear rain, snow, sleet or fog. "Daytime running lights" do not qualify as headlights.

Headlights on high beams reflect rain, fog and snow as it falls. This makes it even harder for you to see. For better visibility during these weather conditions, keep your headlights on low beam. Reduce your speed. Signal your turns further ahead of time to give other drivers and roadway users more warning. Brake early when you decrease speed behind another vehicle or come to an intersection stop.

Some vehicles have front fog lights or front and back fog lights, for use when heavy fog or similar hazardous weather conditions restrict visibility. In New York State, all fog lights must be correctly installed and of a type approved by the Commissioner of DMV. Front fog lights can be amber or white in color. Back fog lights must be red and can be larger than the normal back lights - they will give advance warning of the presence of your vehicle to the drivers behind you. When visibility improves, you can switch off your fog lights to reduce the glare that can bother other drivers.

HOW TO DRIVE IN WINTER

Winter is the most difficult season in which

to drive. In addition to snow and ice on the roads, there are fewer hours of daylight.

Before winter weather arrives, make sure your vehicle is in good condition. Make sure your vehicle has good snow tires. Put them on the vehicle before the first storm. Never combine radial and non-radial tires on the same vehicle. Tires with metal studs can be used in New York State only from October 16 through April 30.

During ice or snow storms, do not drive unless you must. If you must drive, first clear the ice and snow from your vehicle. This includes the headlights and back lights, the windshield wipers, the hood and roof of your vehicle, and all of the windows. Make sure the windshield washer reservoir is filled with a cleaning solution that resists freezing.

Drive slowly. Even if your vehicle has good traction in ice and snow, other drivers will travel with caution. Do not break the flow of traffic by driving faster than other vehicles.

In a rear-wheel drive vehicle, you can normally feel a loss of traction or the start of a slide. With a front-wheel drive vehicle, there might not be a warning. Although front-wheel drive and four-wheel drive vehicles normally handle better in ice and snow, they do not have flawless traction; skids can occur without a warning. Do not let the ability to better handle a front-wheel or four-wheel vehicle make you drive faster than the conditions dictate.

The best method to recover from a skid is the same for all vehicles.

If your rear wheels start to skid:

- Turn the steering wheel in the direction the vehicle is trying to go. If your rear wheels slide left, steer left. If they slide right, steer right.
- If your rear wheels start to slide in the other direction as you recover, turn the steering wheel toward that side. You might have to turn the wheel left and right several times to get your vehicle completely controlled.

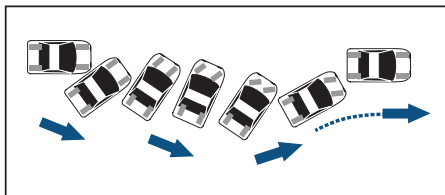
- If your vehicle has anti-lock brakes (ABS), keep your foot with even pressure on the brake pedal. If your vehicle does not have ABS, pump the pedal carefully. Pump more rapidly only as your car slows down. If you brake hard with regular brakes, it will make the situation worse.

If your front wheels skid:

- Take your foot off the gas and shift to neutral or push in the clutch, but do not try to immediately steer.
- As the wheels skid sideways, they will slow the vehicle and traction will return. As traction returns, turn the wheel in the direction you want to go. Then put the transmission in "drive" or release the clutch and accelerate carefully.

To prevent skids on snow and ice, brake early, carefully and gently. "Press" your brakes in slow, steady strokes. Allow the wheels to keep turning. If they begin to lock, decrease pressure on the brake pedal. As your vehicle decreases speed, you can also shift into a lower gear.

When sleet, freezing rain or snow begin to fall, remember that bridges, ramps and overpasses will freeze first. Also know that slippery spots may remain after road workers have removed the snow.



HOW TO AVOID COLLISIONS WITH DEER

Two-thirds of all deer-vehicle collisions occur during the months of October, November and December. This is also the time when deer breed and when they travel the most. Daily deer activity is highest at dawn and dusk, which often is the highest time of travel for motor-vehicle commuters. Deer travel in groups – if you see one, expect more. Areas where there have been many

deer-vehicle collisions often are marked with deer crossing signs. The New York State Department of Environmental Conservation recommends these precautions motorists can take to reduce the chance of a deer hit:

- Be careful when you drive at dawn and dusk; this is when driver visibility is bad and the deer are most active.
- The risk of deer-vehicle collisions increases when deer movements increase during breeding season in October, November and December.
- Decrease speed when you approach deer near roadsides. Deer can “bolt” or change direction at the last minute.
- If you see a deer go across the road, decrease speed and be careful. Deer travel in groups, expect other deer to follow.
- Use emergency lights or flash your headlights to warn other drivers when deer are seen on or near the road.
- Use caution on roadways marked with deer crossing signs. These signs are put in areas that have had a large number of deer-vehicle collisions.

DRIVING EMERGENCIES

The most important rule in any emergency is do not panic. You have a better chance in an emergency if you do not let fear take over. In most emergencies, you will have a second or two to think before you act.

Here is what to do in different emergency situations:

TIRE BLOWOUT - A thumping sound can be a warning that a blowout is about to occur. If you hear it, get safely off the road and check your tires. If a tire blows out, hold the steering wheel tightly and slowly take your foot off the gas pedal. If your vehicle skids, handle it as you would on ice or snow. Do not brake until your vehicle is controlled. Leave the road when it is safe to do so.

LOSS OF A WHEEL - Handle this as you would a blowout. A thump or noise in the wheel can be a warning sound. Leave the roadway and stop. Then check your vehicle or have it checked.

STEERING FAILURE - If your vehicle suddenly will not respond when you steer, slowly take your foot off the gas pedal, turn on your emergency lights and keep your foot off the brake pedal while it is safe to do so. The balance of the vehicle will allow it to continue going straight, but a sudden change in speed could send it out of control. As the vehicle decreases speed, you can brake very carefully to bring it to a stop.

BRAKE FAILURE - If your brake pedal suddenly goes to the floor, try pumping it to increase pressure. If that does not help, use your emergency if you can apply it gradually- but use it gently. If you shift to a lower gear, it will help your vehicle decrease speed.

HEADLIGHT FAILURE - If your headlights suddenly go out, try your emergency lights, parking lights and directional signals. These may continue to work and can give you enough light to leave the roadway safely. If your headlights begin to dim, drive to a service station or pull off the road and go for help.

STUCK GAS PEDAL - Hook your shoe under the pedal and see if you can free it. If not, shift into neutral and use the brake to slow your vehicle and get off the road. Do not turn off the ignition as you could lose your steering control or or lock your steering wheel.

RUNNING OFF THE PAVEMENT - If your wheels move off the pavement, do not suddenly steer or swerve back onto the pavement. Ease your foot off the gas pedal and brake gently. When your vehicle has decreased speed, check for traffic behind you, then turn carefully back onto the pavement.

VEHICLE APPROACHING HEAD-ON IN YOUR LANE - Decrease speed, pull over to the right and sound your horn to warn the other driver. Do not turn into the left lane. If you do, the other driver may suddenly recover and pull back into that lane, causing a head-on collision.

STALLING ON RAILROAD TRACKS - If a train approaches, release your seat belt, leave the vehicle and get as far away as you can from the tracks. Run toward the general direction the train is coming from. If you run "down the track" in the same direction as the train, you can be hit with debris when the train hits your vehicle. When you are completely sure no trains are coming, open your window to listen for a train and try to start the engine. If that fails, shift your vehicle into neutral and push it from the tracks.

GOING INTO WATER - A vehicle will normally float for a while, and you should have time to remove yourself before it starts to sink. Release your seat belt and escape through a window. An open door would cause water to rush in and the car could turn over on top of you.

If the vehicle sinks before you can remove yourself, get into the back seat. An air pocket can form there as the weight of the engine pulls the vehicle down front first. When the vehicle settles, take a breath and escape through a window. When you rise air pressure will build in your lungs. Let it out in small breaths through your nose or lips as you surface. Do not hold your breath tight or try to blow air out; just allow the air to escape in a natural way.

FIRE - If you see smoke come from under the hood, pull off the road and park your vehicle. Turn off the ignition. Get away from the car and call the fire department. It is dangerous to try to fight the fire yourself.

BLOCKED VISION - If your hood opens suddenly or your vision through the windshield becomes blocked by some other object or wipers that have failed, you can open the side window so you can see. Turn on your emergency lights and carefully pull your vehicle off the road and park it.

QUESTIONS

Before you go on to Chapter 11, make sure you can answer these questions:

- What are expressway entrance ramps used for?
- What should you do if an entrance ramp is short?
- When should you signal that you are exiting an expressway?
- What should you check for when you leave an expressway?
- Why is expressway driving different from normal driving?
- What is the main reason night driving is more difficult than daytime driving?
- Driving within the range of your headlights indicates you can stop your vehicle within about how many feet?
- What should you do if you are blinded by the headlights on an approaching vehicle?
- Is it best to keep your headlights on high beam or low beam when there is fog, rain or falling snow?
- Which direction should you turn your steering wheel to get out of a skid?
- How should you use your brake pedal on a slippery road?
- What is the most important rule to remember in any emergency?
- What should you do if one of your tires blows out?
- What is the first thing you should do if your brakes fail?
- What should you do if your wheels move off the pavement?
- What should you do if you miss an expressway exit?

CHAPTER 11 / SHARING THE ROAD

As a driver, you must learn to safely share the road with a variety of other users. These include, but are not limited to: large vehicles, motorcycles, mopeds, pedestrians, bicyclists, in-line skaters, roller skaters, skateboarders, slow moving vehicles, non-motorized scooters and horseback riders. You should know how to safely manage the problems they can present and understand the special rules they must obey.

PEDESTRIANS

Pedestrians are at high risk in traffic. The law requires you to be extra careful to avoid a collision with them.

Look out for children, near schools, bus stops, playgrounds, parks and ice cream trucks.

When you back up your car or truck, look through your back window for pedestrians. Do not rely only on mirrors when children are near. Before you back into a driveway, or out of it, get out of the vehicle and check behind your vehicle.

Pedestrians are supposed to walk on the side of the road and face the traffic in the lane nearest them. When you make a right turn, watch for those pedestrians on your right. When you make a left turn, watch for pedestrians on the other side of the road on your left.

A special right-of-way law allows blind pedestrians to go across the road with a guide dog or a white or metal cane. You must always give them the right-of-way when they are trying to cross at a marked or unmarked crosswalk even if the traffic signals or other right-of-way rules are not in their favor.

Remember to move your eyes as you drive. Look to either side every few seconds to help you spot pedestrians near or approaching the roadway.

The law requires pedestrians to:

- Obey traffic and pedestrian signals, traffic officers and official signs.
- Use the sidewalk when available or face traffic as they walk, as far from the near traffic lane as possible.
- Never stand in the road to hitchhike or conduct business with motorists.

Tips for Drivers:

- Be alert: Always watch for pedestrians.
- Make sure the pedestrian sees you!
- Scan the road and the sides of the road ahead for pedestrians.
- Do not expect a pedestrian to always follow the rules of the road and expect that a pedestrian may be entering the roadway at anytime, anywhere, including outside of crosswalks. Expect the unexpected.
- Before making a turn, look in all directions for pedestrians crossing. Then look again. Particularly, left turns can be a very dangerous maneuver for a motor vehicle driver.
- For example, > 35% of the NYC pedestrian injury crashes occur when a driver is attempting to make a left turn.
- Don't drive after consuming alcohol or other drugs, or when you are fatigued.
- Do not use your cell phone or text while driving.
- Do not use portable electronic devices, headphones or do any other activity that will distract you.

- Look carefully behind your vehicle for approaching pedestrians, especially small children, before backing up.
- For maximum visibility, keep your windshield clean and headlights on.
- Be responsible: Pedestrians have the right of way at all crosswalks. Yield to pedestrians at all crosswalks and intersections, whether marked or unmarked.
- When there is no traffic control signal, drivers must yield the right-of-way to pedestrians, particularly if a pedestrian is in a crosswalk, or there is potential danger to the pedestrian.
- Every driver approaching an intersection or crosswalk must yield the right-of-way to a pedestrian.
- Drivers may be issued a tickets if they are involved in a crash with a pedestrian, injure a pedestrian/bicyclist or fail to exercise due care.
- Stop well back from the crossing to give other vehicles an opportunity to see the crossing pedestrians so they can stop too.
- Yield to pedestrians when making right or left turns at intersections.
- Expect that someone may be entering the roadway or crossing the street that may not see or hear you – expect that there may be persons with disabilities who may have hearing, sight or mobility challenges in and around crossings.
- Pay particular attention to pedestrians accompanied by a guide dog, using a white cane or other mobility assistive devices.
- Use extra caution when driving near children playing along the street or older pedestrians.
- Do not block or park in crosswalks.
- Always stop for a school bus with flashing red lights. Never pass or overtake a vehicle that is stopped for pedestrians. There may be people crossing where you can't see.
- Obey speed limits and come to a complete stop at STOP signs.
- Use extra caution when driving in hard-to-see conditions, such as nighttime or bad weather.
- Slow down and be prepared to stop when turning or otherwise entering a crosswalk.
- Be extra cautious when backing-up and look for pedestrians.
- Be aware of your vehicle's a-pillars (vertical supports on the vehicle that are located around all glass) as these may interfere with seeing clearly (they can create blind spots!)
- Never pass vehicles stopped at a crosswalk. There may be people crossing where you can't see.
- Follow the speed limit, especially around people on the street, in school zones, in neighborhoods where children are present and as you approach an intersection.

BICYCLISTS

Bicyclists have the right to share the road and travel in the same direction as motor vehicles. They are often hard to see in traffic and have no protection from a traffic crash. Check your “blind spots” before you make a turn, parallel park, open a door or leave a curb. Do not depend only on your mirrors – turn your head to look for bicyclists, skaters and scooter operators that may be next to you or approaching.

Give bicyclists room when you drive. Reduce speed as you pass them. Air pressure from a vehicle that passes them quickly can send them off balance.

Be aware that the bicyclist near or in front of you can react to road hazards like a motorcyclist would with sudden changes of speed, direction or lane position.

Bicyclists must:

- Ride in a bicycle lane, if available. Where there is none, they must remain near the right curb or edge of the road or on a right shoulder of the road, to prevent interference with other traffic. When they prepare for a left turn or must move left to avoid hazards, cyclists do not have to remain to the right.
- Come to a full stop before they enter a roadway from a driveway, an alley or over a curb.
- Never travel with more than two side-by-side in a single lane.
- Never ride on a sidewalk if it is prohibited by local laws.

Bicyclists and their passengers ages 1 - 13, must wear an approved helmet. Adults must obey any local laws or regulations about helmet use.

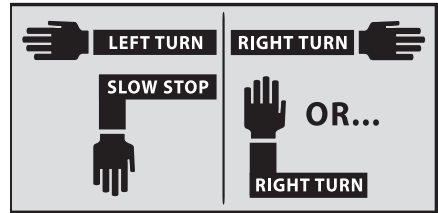
Bicyclists also must:

- Signal turns, lane changes and stops through the use of the hand signals shown. A bicyclist can signal a right turn when they extend the right arm straight out to the right.
- Never carry an infant under a year old as a passenger. It is against the law. Child passengers ages 1 - 4 must ride in attached bicycle safety seats.
- Never carry a passenger unless the bicycle has a passenger seat.
- Keep at least one hand on the handlebars at all times and do not carry any item which prevents correct control of the bicycle.
- Report any bicycle crash that causes death or serious injury to DMV within 10 days of the incident. Bicycle Crash Report forms (MV-104C) are available at any motor vehicle office. You can also submit your report online. Search for the webpage "File a Motorist Crash Report."

A bicycle driven on public highways must have adequate brakes and a horn or bell that can be

heard at least 100 feet (30 m) away. A bicycle used at night must have a headlight visible from at least 500 feet (150 m) ahead and a red taillight visible from at least 300 feet (90 m) behind. One of these lights must be visible from at least 200 feet (60 m) away on each side. A bicycle sold by a dealer must have wide-angle, spoke-mounted reflectors or reflective tires, a wide-angle rear reflector and pedal reflectors.

The rules of the road and right-of-way apply to and protect these and other highway users. You must yield the right-of-way to them just as you would to another vehicle. And they must obey the rules of the road just as motor vehicle drivers do.

Tips for Drivers:

- People on bicycles have the same rights and responsibilities as people behind the wheel of a motor vehicle.
- Drivers must be alert to the presence of bicyclists and drive responsibly to avoid colliding with them or encroaching on their rightful path of travel.
- Yield to bicyclists as you would other drivers and do not underestimate their speed. This will help avoid turning in front of a bicyclist traveling on the road or sidewalk, often at an intersection or driveway.
- Give bicyclists extra space.
- Make sure bicyclists see you.
- In parking lots, at stop signs, when backing up, when parking, and before opening your door, search your surroundings for people, bicycles and other vehicles.
- Learn to recognize common hand signals used by bicyclists to indicate right and left

turns and stopping.

- Drivers turning right on red should look to the right and behind to avoid hitting a bicyclist approaching from the right rear. Stop completely and look left-right-left and behind before turning right on red.
- Obey the speed limit, reduce speed for road conditions and drive defensively to avoid a crash with a cyclist.
- Give cyclists room. Do not pass too closely. Pass bicyclists as you would any other vehicle—when it's safe to move over into an adjacent lane. Look before getting out of your parked vehicle; avoid opening your door into the path of an oncoming bicyclist.
- When passing, reduce speed. Air pressure from your vehicle can send them off balance.
- Be aware that the bicyclist near or in front of you can react to road hazards like a motorcyclist would with sudden changes of speed, direction, or lane position.
- Learn to recognize designated bicycle lanes, bike boxes, 2-way cycle tracks, green painted cycle lanes and other roadway modifications designed for bicyclists to operate safely and efficiently. Drivers are prohibited from operating in these dedicated spaces and must be aware of how bicyclists operate in and around these spaces.
- Bicycle lane – a marked lane dedicated for use by bicycles.
- 2-way cycle track – a marked bicycle lane that allows travel in both directions, similar to a sidewalk for pedestrians.
- Bike Box – a marked area at an intersection, ahead of where traffic is required to stop. This area provides extra space for bicyclists. Some bike boxes extend across the entire intersection and function similar to a crosswalk for pedestrians.
- Green painted bike lanes are used to increase visibility to cyclists in some high

traffic areas.

The rules of the road and right-of-way apply to and protect bicyclists and other roadway users. You must yield the right-of-way to them just as you would to another vehicle. Bicyclists must also obey the rules of the road the same as a motor vehicle driver but as a driver you must anticipate that they will not follow the rules of the road.

IN-LINE SKATERS, SKATE BOARDERS AND NON-MOTORIZED SCOOTERS

As with pedestrians and bicyclists, other road users such as in-line skaters, skateboarders and non-motorized scooters are vulnerable to the careless actions of motor vehicle drivers. Motor vehicle operators are responsible for safe and lawful operation of the vehicles they drive. It is important for you, as a driver, to do everything possible to respect the safety of all road users, including in-line skaters, skateboarders and non-motorized scooters. You as the driver are responsible to exercise due care by being aware, alert, and driving defensively.

Just as you would when keeping an eye out for pedestrians and bicyclists, pay attention to the presence of other road users and exercise due care. Pay particular attention when you observe in-line skaters, skateboarders and non-motorized scooters operating along the roadside, in a designated bike lane, when approaching intersections and at crosswalks.

MOTORCYCLISTS

As a driver, you share the road with a lot of other motorists – not all of which are driving cars or trucks. Motorcycles are common on New York roads. As a driver, you are responsible to be aware of motorcycles and understand how to safely share the road with them.

Motorcyclists have the same rights and responsibilities as drivers of other vehicles, and must follow the same traffic laws as pedestrians, bicyclists and skaters. Though you may often see motorcycles on the roads in the spring, summer, or fall – you can encounter motorcycles anytime

and anywhere. Because we don't see them all year, we may not actively think about them.

Motorcyclists have the same rights and responsibilities as drivers of other vehicles, and must follow the same traffic laws. However, motorcyclists, like pedestrians, bicyclists and skaters, are less visible to drivers. Though you may often see motorcycles on the roads in the spring, summer, or fall – you can encounter motorcycles anytime and anywhere. Because we don't see them all year, we may not actively think about them.

When there is a crash involving a motorcycle and another vehicle, the rider (and passenger) have a much higher chance of being seriously hurt or killed than the driver (and passengers) of the other vehicle. Though motorcyclists are required to wear approved helmets and goggles or a face shield, motorcycles themselves do not offer the rider the protections that you have with other types of vehicles. For example, motorcycles don't protect the rider with a frame around the rider.

Many drivers who are involved in a crash with a motorcyclist report that they did not see the motorcycle. The question is "why not?"

There are several factors that make motorcyclists less visible.

- **Motorcycles, when compared to other highway users, are smaller.** No matter from which direction you view a motorcycle (front, back, or side), you'll find they are smaller than most other highway users.
- **Motorcycles may appear to move faster than other vehicles.** A motorcycle's smaller size makes it seem much farther away, and makes it difficult to judge how far away they are or how fast they are going.
- **Motorcycles may not take up the entire lane because they are not as wide as other vehicles, but an experienced rider may move around within a lane to avoid obstacles, or to help them see better.** In addition to using the full lane, two motorcyclists are allowed to ride side-by-side in a single lane, but a motorcyclist cannot pass or share a lane with another motor vehicle that is not a motorcycle. If you are overtaking a car/SUV/

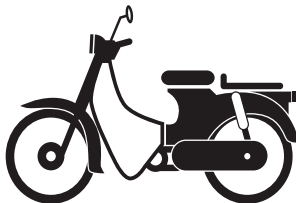
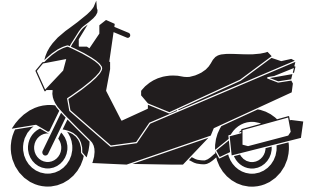
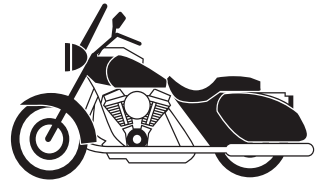
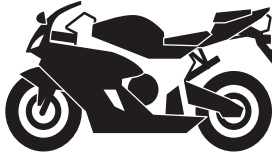
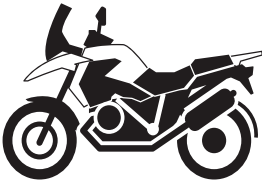
truck, you might not have seen the motorcycle in front of that vehicle until you're already in the passing lane. The same holds true if you are entering an expressway. You may not see a motorcycle that is driving in the left portion of the lane you intend to merge into.

- **Motorcycle lighting is different, and often less obvious, than other vehicles:**
- **Headlights and taillights on motorcycles must be illuminated when driving.** But, with so many vehicles equipped with daytime running lights (i.e. headlights that are always on – even in daylight), motorcycle headlights don't stand out.
- **It's harder to see the brake lights.** Tail lights on a motorcycle are generally smaller in size than those on other vehicles, and because motorcycle tail lights are always on, the brake lights don't always stand out.
- **Motorcycles don't have a tail light at eye level.** Most cars and trucks are equipped with a "Center High Mount Stop Light" (CHMSL) which is designed to be at, or close to, eye level. Most motorcycle brake lights are mounted lower than eye level, which makes them less obvious to many motorists.
- **Turn signals on motorcycles are often close to the headlight or taillights,** which can make them more difficult to see. Additionally, on most motorcycles, the directional signal does not turn off automatically after a turn, so their turn signal may be on inadvertently when the motorcyclist has no intention of turning.

Intersections can be especially dangerous for motorcycles. It's human nature to notice large vehicles first. Motorcycles are smaller than other vehicles, and they may seem to "blend in." Numbers help tell the story:

- The National Highway Traffic Safety Administration reports that, in 2015, 41 percent of fatal motorcycle crashes in the US occurred with “the other vehicle turning left while the motorcycles were going straight, passing, or overtaking other vehicles.”
- In 2014, there were 4,750 reported motorcycle crashes in New York State. 2,546 of these crashes involved another vehicle. That's 53.6% of the reported crashes.

Another factor is that drivers may not see motorcycles simply because they don't look for motorcycles. It's human nature to look for something specific. A new driver may be told to look for cars (and trucks) before going through an intersection – and that is precisely what the driver will look for. All drivers need to train themselves to look for a multitude of hazards (including – BUT NOT LIMITED TO - trucks, buses, bicyclists, pedestrians, and motorcycles).



Because motorcyclists must take additional precautions when they come upon special highway surfaces, you should know what a motorcyclist may do:

- The motorcyclist may quickly change speed or lane position to avoid loose gravel, debris, seams or grooves in the pavement, sewer or access covers or small animals.
- When approaching a railroad crossing, a motorcyclist may decrease speed and rise off the seat to cushion the rough crossing and change direction to go across the tracks at a right angle.
- On steel deck bridges the motorcyclist may move to the center of the lane to adjust for the surface that is not even. Stay a good distance behind a motorcyclist in this situation.

Drivers need to adjust how they drive around motorcycles.

- Don't tailgate. Motorcycles can stop in a shorter distance than cars – under the right conditions. Also, it may be more difficult to notice they are slowing or stopping.
- If it's raining, or dark, give motorcycles even more space.
- Be careful when you pass a motorcyclist. Like bicycles, the air pressure created by vehicles as they quickly pass by can affect motorcycles.

MOPED OPERATORS

Limited use motorcycles, often called mopeds, are low speed, two- or three-wheeled vehicles for limited use on public highways. There are three different classes of mopeds based on maximum performance speed. The chart below describes the requirements for moped operation.

Class	A	B	C
Top speed range mph (km/hr)	31 to 40 (over 48 to 64)	21 to 30 (32 to 48)	20 or less (32 or less)
Type of license or learner permit required ⁴	M	ANY CLASS ⁴	ANY CLASS ⁴
Registration required	YES (A Plate)	YES (B Plate)	YES (C Plate)
Headlight to be on when operating	YES	YES	YES
Helmet & eye protection required when operating ⁵	YES	YES	Recommended
Where operation is permitted	Any Traffic Lane & Shoulder	Right Hand Lane or Shoulder ¹	Right Hand Lane or Shoulder ¹
Mandatory insurance required	YES	YES	Recommended ²
Safety responsibility applies ³	YES	YES	YES
Annual inspection required	YES	Recommended	Recommended
Title required	NO	NO	NO

¹ Except when making a left hand turn

² If a Class C limited use motorcycle is used in a rental business, insurance is mandatory.

³ Safety responsibility is the requirement to pay for or post security for damage or personal injury you may cause in a traffic crash.

⁴ Usual learner permit and junior license restrictions apply.

⁵ least four square inches of reflective material on both sides. Motorcyclists must also wear approved eye protection, even if the motorcycle is equipped with a windshield. Prescription or made-to-order safety glasses may be used if the user can present written certification that they meet DMV standards. The eye protection must be manufactured in conformity with the regulations issued by the Vehicle Equipment Safety Commission (VESC-8).

Class B and C mopeds can be driven only in the right lane of traffic, as far to the right as possible. Class A mopeds are allowed to drive in any lane and any section of a lane. Mopeds are not permitted on expressways or other controlled access highways unless posted signs permit it.

When you approach a moped, use the same precautions you would when you approach a bicyclist.

LARGE VEHICLES

In more than 60 percent of all fatal crashes that involve cars and big trucks, the car driver, not the truck driver, contributes to the cause of the traffic crash. Four out of five times, it is the car driver who is killed.

Many of these crashes could be prevented if motorists know about truck (and bus) limitations and how to steer free from situations that are unsafe and involve large vehicles.

Large trucks, recreational vehicles and buses are not big cars. The bigger they are:

- The bigger their blind spots.
- The longer it takes them to stop.
- The more room they need to maneuver.
- The longer it takes for an automobile to pass them.

Different from cars, large vehicles have deep blind spots behind them. They also have larger blind spots on both sides than cars do. Tractors with long hoods can have a blind spot of 20 feet in front of the vehicle. You should avoid these "no zones."

Side Blind Spots

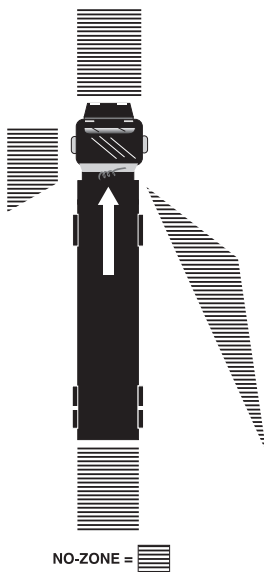
Large vehicles have large blind spots on both sides. If you drive in these blind spots, you cannot be seen by the driver. Even if the driver knows you are there, if you remain next to the vehicle, it can make it difficult for the driver to avoid a dangerous situation.

Blind Spots in Back

If you remain in the back blind spot of a large vehicle, you increase the chance of a crash. The other driver cannot see your car and your view of other traffic will be blocked.

Distance to Stop

Large vehicles take much longer to stop than smaller vehicles that travel at the same speed. For tractor trailers, the difference comes from brake delay. Air brakes transmit brake power from the tractor to the trailer and this can add many feet to the distance it takes to stop. Leave plenty of space between your car and the truck. If you are in front of a truck, indicate your intention to turn or change lanes early. Do not make sudden moves.



Ability to Maneuver

Large vehicles are not as maneuverable as cars. They take longer to stop and to accelerate and they often need to move wide to make their turns.

You can reduce the chance of a collision with a large vehicle if you:

- Do not cut abruptly in front of the large vehicle; when you exit, take a few additional seconds to decrease speed and exit behind it; when you pass, do not pull in front of it unless you can see the whole front of the vehicle in your mirror.
- Pay close attention to the turn signals. Because trucks make wide right turns, they move to the left before they turn right. Look at the turn signals.

- Do not delay near a large vehicle. You may not be visible to the driver in the wide area the truck needs for making a turn.

When you pass

When you pass a large vehicle, it takes a longer time and requires more space than when you pass a car. On a two-way road, leave more time and space when you pass a large vehicle. Make sure you can see the whole front of the vehicle before you return to your lane after you pass. A large vehicle normally loses speed on a grade or a hill. Look far ahead when you drive. If you need to pass a large vehicle, be prepared and know when you are near a grade that can cause the other vehicle to decrease speed. Also, as your own vehicle begins a downward grade, the speed of the other vehicle can increase significantly. This will increase the time it takes you to pass it.

When a truck is backing up

Never pass close behind a large vehicle that is backing up. Often a truck driver has to block a road to back into an area to load or unload goods. Be patient!

It is far better to wait until the large vehicle has

completed its backup maneuver than to try to pass. If you try to pass in this situation, it is likely that you will enter one of the blind spots. This could make your vehicle invisible to the driver and increase the risk of a traffic crash.

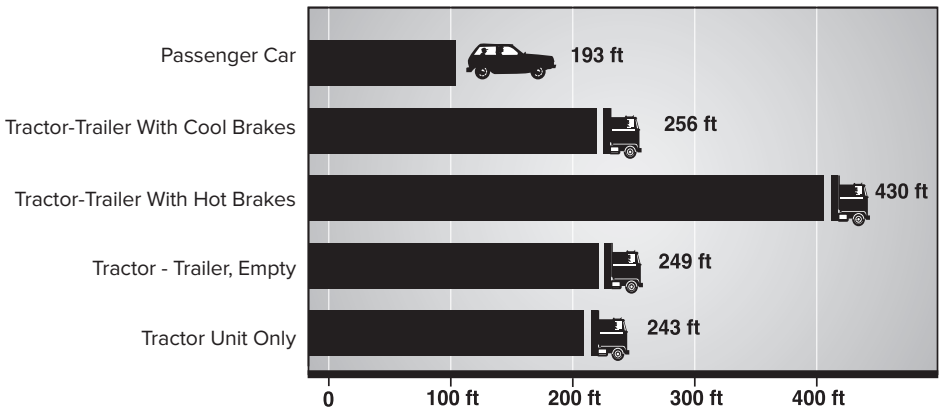
When you approach a truck

Do not underestimate the size and speed of an approaching tractor-trailer or other large vehicle. Its larger size will often make it appear to move at a slower speed than it really is. Also, from a distance it may not appear to be as large as it really is. The other vehicle will often reach you before you expect! When you drive on a two-way highway, it is often better to move as far to the right as possible to make sure your vehicle will not be hit by an approaching tractor-trailer or other large vehicle.

When you stop behind a truck

Always leave space when you stop in back of a truck or bus at a traffic light or stop sign, especially when you face up a hill. The truck or bus could move backward slightly when it starts. If you leave enough room between your vehicle and the vehicle ahead, you usually can pull away from behind and go around it.

Average Total Stopping Distance at 55 MPH*



*Distance based on a study of average braking distances by the Insurance Institute for Highway Safety + reaction distance recommended by the National Safety Council

SLOW-MOVING VEHICLES

The “slow-moving vehicle” symbol, a reflective orange triangle, must be displayed on the back of vehicles drawn by animals, most farm vehicles, and construction equipment. The United States Postal Service also requires these orange safety-triangles to be displayed on all rural mail delivery vehicles. Use caution when you approach a slow-moving vehicle and make sure it is safe before you pass.

ALL-TERRAIN VEHICLES AND SNOWMOBILES

State law allows all-terrain vehicles (ATVs) and snowmobiles to legally go across many state highways and local roadways. Before they cross, they must come to a stop and yield to traffic. They must go across at a 90-degree angle to the road surface.

HORSE RIDERS

Horse riders are subject to, and protected by, the rules of the road. They also must ride single file near the right curb or road edge or on a right shoulder, lane or path that can be used.

The law requires you to be careful when you approach a horse being ridden or walked along a road. You must drive at an acceptable speed and at an acceptable distance away from the horse. It is illegal to sound your horn when you approach or pass a horse.

QUESTIONS

Before you go on to Chapter 12, make sure you can answer these questions:

- How do the blind spots around a large commercial vehicle differ from the blind spots around a car?
- How does the stopping distance of a large vehicle with air brakes compare with the stopping distance of a car?

- After you pass a large vehicle, what should you make sure of before you return to the lane of the large vehicle?
- What is the best method to follow when you approach a large vehicle that is in reverse as it moves toward a loading area?
- When children are close, what should you do before you back out of a driveway?
- How can you identify a blind pedestrian to whom you must yield the right-of-way?
- Where must a pedestrian walk when there are no sidewalks?
- How must you approach a bicyclist?
- Must a bicyclist obey traffic laws and signs?
- Where there is no bicycle lane, where on the road must a bicyclist ride?
- What equipment must a bicycle have when used at night?
- What can a driver do to be more aware of motorcyclists?
- What factors contribute to drivers not being aware of motorcycles?
- Why are motorcycles harder to see?
- Why is it important for a motorist to be aware of motorcycles?
- May three motorcyclists ride side-by-side in a single lane?
- What is the slow moving vehicle symbol?
- Where are you likely to find an ATV, snowmobile or horse rider?

CHAPTER 12 / IF YOU ARE IN A TRAFFIC CRASH

There are more than 300,000 traffic crashes in New York State each year. Even if you obey the law and follow the advice in this manual, it is possible you will avoid a crash. Yet even the most careful drivers are involved in crashes caused by events that are not planned or the errors of other drivers. If you are in a traffic crash, you must be ready to act in a responsible manner at the scene and obey the law when you report the incident.

You can carry an emergency kit in your vehicle that has flares and first aid supplies. Emergency road-kits are available in department stores or stores that sell automobile goods.

AT THE SCENE

If you are in a crash, you must stop. The level of damage does not matter. You must stop. It is a traffic violation to leave the scene of an incident, like a traffic crash that involves property damage. It is a criminal violation to leave the scene of an incident that involves a fatality or personal injury. Even if the crash involves only property damage, you must exchange information with other drivers involved. Give your name, address, driver license number and vehicle registration and insurance information. This includes the insurance policy number and effective date. Give the information to the other drivers and police on the scene. You must show your insurance identification card if requested. If a parked vehicle or property different from a vehicle is damaged or if a domestic animal is injured, you must try to find the owner or notify the police.

If any person is injured or killed, the police must be notified immediately and you should make sure ambulance or rescue personnel have been called.

If possible, move your vehicle off the road. Protect the scene with reflectors or flares, but watch for any fuel that may leak. Make sure to protect yourself and others from oncoming traffic.

EMERGENCY FIRST-AID

Do not stop at a crash scene unless you are involved or emergency help has not arrived. Focus on driving and the directions given by traffic officers.

Follow these first-aid tips if help is not immediately available:

- Do not move an injured person unless it becomes necessary because of fire or another life threatening danger. If you must move an injured person, keep the back and neck as straight as possible. Put your arms under the back, and carefully support the neck with your upper arms. Hold clothing with your hands and pull the victim head first away from the danger.
- If there are wires down, do not go near them. If wires touch the vehicle or lay near it, warn the occupants to remain inside until help arrives.

REPORTS TO DMV

If you are in a traffic crash that involves a fatality or personal injury, you must report it to the DMV. You must also report any traffic incident or crash that involves \$1,000 or more in damage to the property of any one person. The form Report of Motor Vehicle Crash (MV-104) is available at any motor vehicle office, from most insurance agents, and from the DMV website dmv.ny.gov (search under Forms).

When you report a crash or incident to your insurance company, it does not mean your legal obligation is finished. You must file a report with DMV within 10 days of the event. The failure to report a crash is a criminal offense (misdemeanor) and can mean the suspension or revocation of your driver license and/or registrations and those of the vehicle owner.

If the driver is injured and unable to complete the report, a passenger or the vehicle owner may do so.

CHAPTER 13 / (ADAS)

Advanced Driver Assistance Systems (ADAS)

Advanced Driver Assistance Systems (ADAS) Safety Features

Many newer vehicles on the road today have driver assistance safety features designed to save lives and prevent injuries, if used properly. Some of the driver assist safety features sense and monitor conditions; identify present and potential dangers; and may help you avoid a potential crash. These safety features may provide alerts, such as sounds or vibration or may take control of your vehicle, such as adjusting the braking or steering. Safety features include, but are not limited to: blind spot warning, back up camera, forward collision warning, automatic emergency braking, lane keeping assistance, and active parking assist.

When taking your driving test, you will not be allowed to use certain safety features, such as parking assist and cruise control.

Safety features are meant to assist you in the driving task, they are not there to drive the vehicle. You must remain engaged and always focused on the driving task. It is your responsibility to be aware of everything around you by performing head checks and using mirrors and cameras to observe traffic and other roadway users. You are responsible for the safe operation of your vehicle at all times. Do not rely on safety features alone. It is important to follow the tips below when driving vehicles equipped with safety features.

- It is your responsibility to always stay focused when driving.
- Read your Vehicle Owner's Manual to learn how your vehicle's safety features operate.
- Know the limitations of your vehicle's safety features.

- Be aware that safety features may not work properly in certain conditions such as rain, snow, ice, fog, hills, and curves.

- Always keep vehicle sensors clean and damage free.
- Always keep software technology up to date (if applicable) and follow your vehicle manufacturer's recommendations.

ADAS safety features provide many benefits and have great potential to assist drivers in reducing crashes, injuries, and fatalities when used properly.

VEHICLE TECHNOLOGIES PERMITTED AND NOT PERMITTED FOR TESTING

WARNING SYSTEMS	PERMITTED FOR TESTING
Back-up warning	Yes
Blind spot monitor and warning	Yes
Camera technologies (rear, sideview, surround view)	Yes
Curve speed warning	Yes
Detection technologies (bicycle, pedestrian, and obstacle detection)	Yes
Forward collision warning systems	Yes
High speed alert	Yes
Lane departure warning device	Yes
Parking Sensors	Yes
Rear cross-traffic alert	Yes
ASSIST SYSTEMS	PERMITTED FOR TESTING
Automatic emergency braking systems or brake assist	Yes
Automatic reverse braking	Yes
Lane keeping assist	Yes
Left turn crash avoidance	Yes
Adaptive cruise control	No
Automatic parallel parking	No

Please note: The license examiner will evaluate if the applicant has demonstrated the ability to safely operate the vehicle and has not relied on ADAS features. The examiner's scoring will be final.

DMV CONSUMER DIRECTORY
STATE DMV OFFICES

UPSTATE REGION

Albany

855 Central Ave
Albany, NY 12206

Albany Concourse Innovation Center

263 Madison Avenue
Empire State Plaza
Albany, NY 12210

Peekskill

1045 Park Street
Peekskill, NY 10566

Syracuse

4671 Onondaga Boulevard,
Western Lights Plaza
Syracuse, NY 13219

North Syracuse

5801 East Taft Road
North Syracuse, NY 13212

West Haverstraw

45 South RTE 9W, Suite 50
West Haverstraw, NY 10993
North of Rt 202, South of Rt 210

White Plains

1 Maple Ave
White Plains, NY 10605

LONG ISLAND REGION

Bethpage

4031 Hempstead Turnpike
Bethpage, NY 11714

Garden City

400 Oak Street
Garden City, NY 11530

Hauppauge

250 Veterans Memorial Highway
Hauppauge, NY 11788

Huntington

1815 E. Jericho Turnpike
Huntington, NY 11743

Massapequa

927 Carmans Road, Carmans Plaza Shopping Center
Massapequa, NY 11758

Medford

2799 Route 112, Suite 1
Medford, NY 11763

Riverhead

200 Old Country Road, Route 58
Riverhead, NY 11901

METROPOLITAN REGION

Manhattan

• **Harlem**

5 West 125th Street
2nd Floor
New York, NY, 10027

• **Midtown Manhattan**

366 West 31st Street
New York, NY 10001

• **License Express**

145 West 30th Street
New York, NY 10001
No permit testing.

• **Lower Manhattan – Greenwich St.**

11 Greenwich St.
New York, NY 10004

Brooklyn – Atlantic Center

625 Atlantic Avenue, 2nd Floor
Brooklyn, NY 11217

Brooklyn - Coney Island

2875 West 8th Street
Brooklyn, NY 11224

Bronx District Office

696 East Fordham Road
Bronx, NY 0458

Bronx Licensing Center

1350 Commerce Avenue
Bronx, NY 10461

Jamaica

168-46 91st Avenue, 2nd Floor
Jamaica, NY 11432

• **Springfield Gardens**

168-35 Rockaway Boulevard
Jamaica, NY 11434

• **College Point**

30-56 Whitestone Expressway
Flushing, NY 11354

Richmond

1775 South Avenue,
West Shore Shopping Plaza
Staten Island, NY 10314

Yonkers

1 Larkin Plaza
Yonkers, NY 10701

DMV CONSUMER DIRECTORY

COUNTY DMV OFFICES

Allegheny County

- **Belmont**
7 Court Street, Court House
Belmont, NY 14813

Broome County

- **Endicott**
137 Washington Avenue
Endicott, NY 13760
- **Binghamton**
81 Chenango Street
Binghamton, NY 13901

Cattaraugus County

- **Little Valley**
303 Court Street
Little Valley, NY 14755
- **Delevan**
46 North Main Street
Delevan, NY 14042
- **Olean**
1 Leo Moss Drive, Suite 1412
Olean, NY 14760

Cayuga County

- **Auburn**
160 Genesee Street
Auburn, NY 13021

Chautauqua County

- **Mayville**
7 North Erie Street
Mayville, NY 14757
- **Dunkirk**
3988 Vineyard Drive
Dunkirk, NY 14048
- **Jamestown**
512 West 3rd Street
Jamestown, NY 14701

Chemung County

- **Elmira**
425-477 Pennsylvania Avenue
Elmira, NY 14904

Chenango County

- **Norwich**
5 Court Street
Norwich, NY 13815

Clinton County

- **Plattsburgh**
137 Margaret Street
Plattsburgh, NY 12901

Columbia County

- **Hudson**
560 Warren Street
Hudson, NY 12534

Cortland County

- **Cortland**
112 River Street
Cortland, NY 13045

Delaware County

- **Delhi**
1 Court House Square, Suite 1
Delhi, NY 13753
- **Deposit**
3 Elm Street
Deposit, NY 13754
- **Margaretville**
773 Main Street
Margaretville, NY 12455
- **Sidney**
44 Grand Street
Sidney, NY 13838

Dutchess County

- **Poughkeepsie**
22 Market Street,
County Office Building,
Poughkeepsie, NY 12601
- **Beacon**
223 Main Street
Beacon, NY 12508
- **Millbrook**
15 Merritt Avenue
Millbrook, NY 12545
- **Wappingers Falls**
29 Marshall Road, Suite 3B
Wappingers Falls, NY 12590

Erie County

- **Buffalo**
170 Pearl Street, Rath Building,
Buffalo, NY 14202
- **Cheektowaga**
2122 George Urban Boulevard
Depew, NY 14043
- **Eastern Hills Mall**
4545 Transit Road
Williamsville, NY 14221
- **Evans Town Hall**
6853 Erie Rd.
Derby, NY 14006

- **Amherst - Tonawanda**
2309 Eggert Road
Tonawanda, NY 14150

- **West Seneca - Southgate Plaza**
1088-B Union Rd,
W. Seneca, NY 14224

Essex County

- **Elizabethtown**
7559 Court Street
Elizabethtown, NY 12932
- **Ticonderoga**
132 Montcalm Street Suite 3
Ticonderoga, NY 12883

Franklin County

- **Malone**
355 West Main Street Room 107
Malone, NY 12953
- **Saranac Lake**
39 Main Street Suite 4
Saranac Lake, NY 12983

Fulton County

- **Johnstown**
223 West Main Street
Johnstown, NY 12095

Genesee County

- **Batavia**
15 Main Street County Building 1
Batavia, NY 14020

Greene County

- **Catskill**
411 Main Street
Catskill, NY 12414

Hamilton County

- **Lake Pleasant**
102 County View Drive,
Lake Pleasant, NY 12108

Herkimer County

- **Herkimer**
109 Mary Street, Suite 1111
Herkimer, NY 13350
- **Old Forge**
183 Park Avenue
Old Forge, NY 13420

Jefferson County

- **Watertown**
175 Arsenal Street,
County Building 1st Floor
Watertown, NY 13601

Lewis County

- **Lowville**
7513 E. State St
Lowville, NY 13367

Livingston County

- **Geneseo**
6 Court Street, Room 204
Geneseo, NY 14454
- **Dansville**
North Dansville Town Hall
14 Clara Barton Street
Dansville, NY 14437

Madison County

- **Wampsville**
138 North Court Street, Building 4
Wampsville, NY 13163

Monroe County

- **Henrietta**
1225 Jefferson Road, Suite A 26 A,
Rochester, NY 14623
- **Rochester Downtown**
200 E. Main St, Suite 101,
Rochester, NY 14604
- **Greece**
Greece Ridge Mall, 152 Greece Ridge Center,
Rochester, NY 14626
- **Irondequoit**
545 Titus Avenue
Rochester, NY 14617
- **Westside Mobile Units**
1940 West Ridge Road
Rochester, NY 14626

Montgomery County

- **Fonda**
County Office Building
64 Broadway,
Fonda, NY 12068

Niagara County

- **Lockport**
111 Main Street
Lockport, NY 14095
- **Niagara Falls**
1001 11th Street
Niagara Falls, NY 14301
- **North Tonawanda**
500 Wheatfield Street
North Tonawanda, NY 14120

Oneida County

- **Utica**
321 Main Street
Utica, NY 13501
- **Rome**
301 West Dominick Street
Rome, NY 13440

Ontario County

- **Canandaigua**
20 Ontario Street
Canandaigua, NY 14424

Orange County

- **Goshen**
255 Main St, Orange County Government Center,
Goshen, NY 10924
- **Newburgh**
128 Broadway
Newburgh, NY 12550
- **Middletown**
12 King Street
Middletown, NY 10940
- **Port Jervis**
17-19 Sussex Street, Suite 85N,
Port Jervis, NY 12771

Orleans County

- **Albion**
14016 Route 31 West,
Albion, NY 14411

Oswego County

- **Oswego**
384 East River Road
Oswego, NY 13126
- **Fulton**
200 North Second Street
Fulton, NY 13069
- **Pulaski**
2 Broad Street
Pulaski, NY 13142

Otsego County

- **Cooperstown**
197 Main Street
Cooperstown, NY 13326

Putnam County

- **Brewster**
1 Geneva Road Terravest Corporate Park, Route 312
Brewster, NY 10509
(adjacent to Exit 19 of I-84)

Rensselaer County

- **Troy**
1600 Seventh Avenue
Troy, NY 12180
- **East Greenbush**
99 Troy Road,
East Greenbush, NY 12061

St. Lawrence County

- **Canton**
80 State Highway 310, Suite 3
Canton, NY 13617
- **Gouverneur**
1227 US Highway 11
Gouverneur, NY 13642
- **Massena**
21 Harrowgate Commons
Massena, NY 13622
- **Ogdensburg**
206-210 Ford Street
Ogdensburg, NY 13669

Saratoga County

- **Ballston Spa**
40 McMaster Street
Ballston Spa, NY 12020
- **Clifton Park**
22 Clifton Country Center
Clifton Park, NY 12065
- **Saratoga Springs**
3065 Route 50, Wilton Mall
Saratoga Springs, NY 12866

Schenectady County

- **Schenectady**
2025 State Street
Schenectady, NY 12305

Schoharie County

- **Schoharie**
284 Main Street
Schoharie, NY 12157

Schuyler County

- **Watkins Glen**
105 Ninth Street
Watkins Glen, NY 14891

Seneca County

- **Waterloo**
1 DiPronio Drive
Waterloo, NY 13165

Steuben County

- **Bath**
East Pulteney Square
Bath, NY 14810
- **Corning**
77 Victory Highway,
Painted Post, NY 14830
- **Hornell**
7604 Seneca Rd, Suite B
Hornell, NY 14843

Sullivan County

- **Monticello**
100 North Street, County Government Center,
Monticello, NY 12701

Tioga County

- **Owego**
56 Main Street
Owego, NY 13827

Tompkins County

- **Ithaca**
301 Third Street
Ithaca, NY 14850

Ulster County

- **Kingston**
244 Fair Street
Kingston, NY 12401

Warren County

- **Lake George**
1340 State Route 9
Lake George, NY 12845

Washington County

- **Fort Edward**
383 Broadway
Fort Edward, NY 12828

Wayne County

- **Lyons**
9 Pearl Street.
Lyons, NY 14489

Wyoming County

- **Warsaw**
6 Perry Avenue
Warsaw, NY 14569

Yates County

- **Penn Yan**
417 Liberty Street, Suite 1067
Penn Yan 14527

TELEPHONE NUMBERS

DMV CALL CENTERS

Metropolitan New York City:

From area codes 212, 347, 646, 718, 917, 929:
1-(212)-645-5550 or 1-(718)-966-6155

Downstate Call Center General Assistance:

1-(718)-477-4820

Albany Call Center General Assistance:

1-(518)-486-9786

EDL Helpline: 1-(518) 474-9981

TTY/TDD (Telecommunications Device for the Deaf):

Within New York State: 1-(800) 368-1186,
Outside New York State: 1-(518) 473-9002

To schedule a road test: dmv.ny.gov or
1-(518)-402-2100

IMPORTANT DMV ADDRESSES & TELEPHONE NUMBERS

Office of Traffic Violations

6 Empire State Plaza
Albany, NY 12228

(See *DMV Call Centers*)

To contact a Traffic Violations Bureau about a scheduled hearing:

New York City TVB: 1-(718) 488-5710

Driver Improvement Bureau

6 Empire State Plaza
Albany, NY 12228
1-(518) 474-0774

Financial Security Bureau (formerly Insurance Services Bureau)

6 Empire State Plaza
Albany, NY 12228
1-(518) 474-0700

Bureau of Consumer & Facility Services

PO Box 2700-ESP
Albany, NY 12220-0700

- **Complaints about a repair shop/dealership/inspection station:** 1-(518) 474-8943
- **Questions about Emissions Inspections:** 1-(518)-473-0597

Custom Plates Unit

6 Empire State Plaza
P.O. Box 2775
Albany, NY 12220
1-(518)-402-4838

Title Services Bureau

6 Empire State Plaza
Albany, NY 12228
1-(518)-486-4714

For the most recent updates of state and county motor vehicle office locations, useful DMV addresses and telephone numbers, and other important information, please visit our website.

The DMV website: dmv.ny.gov

Note: Approximate metric equivalents to U.S. measures are provided for information only.
New York State laws and regulations use U.S. measurements only.

The information in this manual is as accurate as possible at the time of publication but is subject to change. This manual is intended to provide basic information and cannot possibly cover every traffic law or situation.

If you have a question about the information supplied in this manual or a situation not covered, consult a motor vehicles representative at any motor vehicle office, or write to: Office of Communications, Department of Motor Vehicles, 6 Empire State Plaza, Albany, NY 12228

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